



Date Sent to UR Contractor	23/5/2026 11:27 SLT
Date Received from Supplier	25/5/2026 10:57 SLT
SLT signed Date	
CEO/Director signed date	27/5/2026 18:12 SLT

PRINCIPAL CONTRACT

**FTTH New Connections through
Sri Lanka Telecom Services (Private)
Limited**

L/0733/2025

SRI LANKA TELECOM SERVICES LTD.

&

SRI LANKA TELECOM PLC



*FTTH New Connections through Sri Lanka Telecom Services (Private) Limited
L/0733/2025*

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*FTTH New Connections through Sri Lanka Telecom Services (Private) Limited
L/0733/2025*

CONTRACT FORM

THIS UNIT RATE CONTRACT is made on this 27/5/2026 | 18:12 SLT at Colombo.

BETWEEN

SRI LANKA TELECOM PLC, bearing registration No.PQ7, a Public Company duly incorporated in the Democratic Socialist Republic Of Sri Lanka by the order published in the Gazette (Extraordinary) No. 942/7 of 25th September 1996 under the conversion of Public Corporations or Government Owned Business Undertakings into Public Companies Act no. 23, of 1987 and by order published in the Gazette (Extraordinary) No.942/7 dated 25th September 1996 and re-registered under the Companies Act No. 7 of 2007 and having its registered office at Lotus Road, Colombo 01, Sri Lanka (hereinafter sometimes called and referred to as “SLT” which terms or expression shall, where the context so requires or admits, mean and include the said Sri Lanka Telecom PLC, its successors and assigns) of the One Part.

AND

SRI LANKA TELECOM SERVICES LIMITED, bearing registration No. PB 914 a company duly incorporated under the laws of Sri Lanka and having its Registered Office at No: 148/15, Lesley Ranagala Mawatha, Colombo 08 (hereinafter sometimes called and referred to as “The Contractor” which term or expression shall, where the context so requires or admits, mean and include the said Sri Lanka Telecom Services Limited, its successors and permitted assigns) of the Other Part.

WHEREAS SLT is desirous of deploying the Contractor for **Out Side Plant related work of Provisioning and Installation of FTTH (Fiber To the Home) New Connections** under the Model 1A or Model 1B as ordered by SLT under the respective Purchase Order, during the period from 01st January 2026 to 31st December 2026, which services shall be executed by the Contractor as specified in this Contract and the Contractor has offered to execute and guarantee the said works which may include supply and delivery of Goods and Services upon the terms and in the manner herein provided and which offer has been accepted by SLT for the unit rates (exclusive of taxes) morefully stated in the List of Unit Rate **Annex A** hereof which shall form an integral part of this Contract, up to a maximum ceiling value of Sri Lankan Rupees Two Billion One Hundred Twenty-Four Million Seven Hundred Thousand (Rs. 2,124,700,000.00), according to the requirement of SLT.

WHEREAS the said ceiling value shall be divided under the respective model as follows:

Model	Quantity	Maximum Ceiling Limit (LKR Mn) (Excluding Tax)
Model 1A (FTTH Provisioning Service, Additional Pole Erecting Service, Material Transport Service and PEO TV Provisioning Service)	10,000	147.43
Model 1B (FTTH Provisioning Service, Additional Pole Erecting Service, Material Transport Service and PEO TV Provisioning Service and Supplying of Concrete Poles, pole Administrative Fee)	110,000	1,977.27
Total Ceiling Value		2,124.70

FTTH New Connections through Sri Lanka Telecom Services (Private) Limited
L/0733/2025

WHEREAS The Unit Rates stated under the “List of Unit Rates morefully described in Annex A” under each Model are summarized below.

Item Description	Model 1A (LKR) Excluding Taxes	Model 1B (LKR) Excluding Taxes
FTTH Provisioning Service Cost	11,000.00	11,000.00
Additional Pole Erecting Service Cost (Beyond the agreed rate of 15%)	10,114.29	10,114.29
Transport of Materials (per Month)	5,000,000.00	5,000,000.00
Provision of PEO TV Connections	4,350.00	4,350.00
Concrete Pole Administrative Fee (per pole)	-	500.00

WHEREAS in the event of SLT pursuing Model 1B above, the Concrete Poles shall be procured at the Unit Rates stated below, provided that such Unit Rates may be revised at SLT’s sole discretion either every Six (06) months or upon any significant change in the market, whichever occurs first.

Item Description	Model 1B (LKR) Excluding Taxes)
Supply of Concrete Poles by SLTS – (6.7m CE)	10,396.84
Supply of Concrete Poles by SLTS – (5.6m CE)	7,547.78
Supply of Concrete Poles by SLTS – (8.0m)	17,369.34

Prior to the said offer and the execution of the Contract, the Contractor has satisfied itself as to the nature, the physical and climatic conditions and have also satisfied itself as to where and in what manner the labor and material required for the work can be obtained and to all other matters which might have influenced the Contractor in making its offer.

AND WHEREAS SLT reposing great trust and confidence on the ability and prudence of the Contractor to do so agrees to sign this Contract.

This shall be the Principal Contract (hereinafter referred to as the Contract) between the two parties and thereafter **Purchase Orders** will be issued (a specimen formats of which are attached hereto marked as **Annex B**) for each execution of the Projects/Works.

NOW THE PARTIES HERETO AGREE AS FOLLOWS:

1. In consideration of the payments to be made by SLT to the Contractor as hereinafter mentioned, the Contractor hereby covenants with SLT to execute the Supply and Delivery of Goods and perform the services as morefully described in the General Conditions of Contract and remedying defects therein and guarantee the said Goods and services in conformity in all respects with the provisions of the Contract entered into as hereinafter recited.
2. SLT hereby covenant to pay to the Contractor in consideration of the Supply and Delivery of Goods and Services and remedying defects therein to the satisfaction of SLT, the Contract Price as may become payable under the respective Purchase Order to this Contract in the manner as provided in Annex A of the Principal Contract, as applicable.

FTTH New Connections through Sri Lanka Telecom Services (Private) Limited
L/0733/2025

3. The Contract Price is based on the unit rates in **Annex A** hereto, as applicable. However, SLT reserves the right to allocate work based on the unit rates of any of the categories I, II and III of the aforesaid **Annex A under both Model 1A and 1B**, as applicable. resulting in reduction of the Contract Price, in the event the Contractor shall have no legitimate expectation to the difference between the Contract Price stated under the Purchase Order and the actual value of the completed work under the Purchase Order, as indicated under the Purchase Order.
4. Any notice under this Contract shall be in the form of a letter, facsimile, e-mail notices to either party which shall be given at such address or addresses as such party shall specify from time to time, by written notices to the other. In the absence of such notice to the contrary a notice to the Contractor shall be property addressed to;

SLT

Chief Executive Officer
Sri Lanka Telecom PLC
Sri Lanka Telecom Headquarters
Lotus Road
Colombo 01
Sri Lanka

Telephone : +94 11 2 335 010

with copy to
GM/Supply Chain Management
Sri Lanka Telecom PLC
Sri Lanka Telecom Headquarters
Lotus Road
Colombo 01
Sri Lanka

Tel : +94 11 2 021351

E-mail : e_proc@slt.com.lk

CONTRACTOR

Asela Galappattige,
Chief Operating Officer,
Sri Lanka Telecom Services Limited

Address : No: 148/15, Lesley Ranagala Mawatha, Colombo 08.

Tel : 0112818660; 0112 818 661

Fax : 0112818652.

Email : aselag@slt.com.lk

A notice shall become effective as follows:

- (a) In case of Personal Delivery or delivery by Courier or Registered Mail, on Delivery.
 - (b) In case of e-mail or Facsimile, twenty-four (24) hours after sending the E-mail or confirmed transmission, or if the said date falls on a holiday, on the next working day.
5. In this Contract unless otherwise stated to the contrary, words and expressions shall have the same meanings as set forth in the General Conditions of the Contract.
 6. This Contract sets forth the entire agreement between the parties pertaining to the Supply and Delivery of Goods and Services described herein and any Purchase Order to this Contract and supersedes any and all earlier verbal or written agreements. This Contract shall prevail

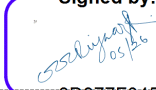
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L/0733/2025*

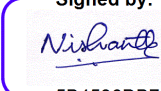
over all other contract documents. In the event of any discrepancy or inconsistency, then the documents shall prevail in the order listed below and shall be deemed to form and be construed as part of this Contract.

- (1) Contract Form
- (2) Special Conditions of the Contract
- (3) General Conditions of the Contract
- (4) List of Unit Rates morefully described in Annex A
- (5) Specimen format of Purchase Order and subsequently issued Purchase Orders under this Contract.
- (6) Scope of Work
- (7) Installation Guideline

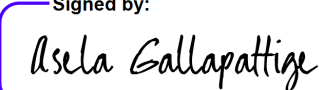
IN WITNESS WHEREOF M. Riyaaz Rasheed, Chief Executive Officer and K. A. J. Nishantha General Manager of Supply Chain Management of Sri Lanka Telecom PLC have placed their signatures as the authorized signatories of said Sri Lanka Telecom PLC and the signature of Asela Galappattige, Chief Operating Officer of Sri Lanka Telecom Services Limited, the authorized signatory of Sri Lanka Telecom Services Limited was placed hereto at the place and on the date hereinbefore mentioned.

Signatures of M. Riyaaz Rasheed the Chief)
Executive Officer and K. A. J. Nishantha)
General Manager of Supply Chain)
Management of Sri Lanka Telecom PLC the)
authorized signatories of Said Sri Lanka)
Telecom PLC were placed hereto)

Signed by:

8D977F0457CF4A1...
Chief Executive Officer - SLT

Signed by:

5B4536DB7554451...
General Manager /SCM – SLT

The Signature of Asela Galappattige the)
Chief Operating officer of Sri Lanka)
Telecom) Services Limited the authorized)
signatory of said Sri Lanka Telecom Services)
Limited was placed hereto)

Signed by:

0DF554A25A3F480...
Chief Operating officer - SLTS

*FTTH New Connections through Sri Lanka Telecom Services (Private) Limited
L/0733/2025*

Special Conditions of Contracts

The Special Conditions of Contract (SCC), detailed in the manner as stated below, under **Table 01** and **Table 02** shall be read together with the General Conditions of Contract and shall form part and parcel of the contract entered between the parties thereunder. SCC shall be prioritized over the General Conditions of Contract and list of priorities shall be as detailed under Clause 1.1.2 hereof.

(Based on the requirements of the project the following details required under blanks of the relevant clauses of the General Conditions of Contracts are to be filled up by SLT under Table 1 prior to floating of the Tender.)

Table 1;

Clause Number	Details Required	Updated Details
1	Definitions Goods Services Warranty	Concrete poles, FTTH Drop wire and other related items required to deliver the Services FTTH New Connections, Reconnections, FTTH Removals and Relocation, PEO TV New Connections for existing FTTH Customers and FTTH based Enterprise Service New Connections as per the SLT requirement As per Clause 36.2
1.1.2	Prioritization of documents	Provide the List of Documents according to the priority - (1) Contract Form (2) Special Conditions of the Contract (3) General Conditions of the Contract (4) List of Unit Rates morefully described in Annex A (5) Specimen format of Purchase Order and subsequently issued Purchase Orders under this Contract. (6) Scope of Work (7) Installation Guideline
11.2	Formula on Delay Damages	11.2 - Supply and Delivery within Agreed Period and Delay damages for FTTH New Connections, Reconnections, FTTH Removals and Relocation, PEO TV New Connections for existing FTTH Customers and FTTH based Enterprise Service New Connections

FTTH New Connections through Sri Lanka Telecom Services (Private) Limited
L/0733/2025

Clause Number	Details Required	Updated Details
		If the extension is granted to the Contractor subject to liquidated damages, SLT shall in addition to any other remedies available to SLT under this Contract, deduct liquidated damages from the amount due and payable under each Purchase Order as follows ; Sri Lankan Rupees Five Hundred (LKR 500.00) shall be deducted per connection for each day of delay from the respective invoice as Liquidated Damages.
16	Period of Completion / Contract Milestones	16.1 The unit rates under the List of Unit Rates hereto shall be valid and be in force from 01st January 2026 to 31st December 2026. All Purchase Orders to this Contract shall be issued during the said period or till the ceiling value is reached unless extended on mutual agreement. 16.2 The Contractor shall successfully complete work and the Provisional Acceptance Tests and the Certificates of Provisional Acceptance shall be obtained within the periods stated below; 16.2.1 – In the event the provisioning of each Service (FTTH New Connection) does not involve concrete poles – within a period of 05 official working days. 16.2.2 - In the event the provisioning of each Service (FTTH New Connection) involves concrete poles – within a period of 07 official working days 16.2.3 -In the event the provisioning of Peo TV New connection to the existing FTTH customers – within a period of 05 official working days. Clause 16.3 shall stand deleted
36.2	Warranty period	The Warranty Period of Goods and Services under each Purchas Order shall have a Warranty Period of One year from the corresponding Provisional Acceptance Certificate unless extended under Clause 35.7.2. Any defective part repaired or replaced during the Warranty Period shall itself be subjected to a further Warranty Period of one (01) year

FTTH New Connections through Sri Lanka Telecom Services (Private) Limited
L/0733/2025

Table 2;

	Clause Number under the General Conditions of Contract	Amendment/ New addition
1.	6, 7, 8, 29.2	Shall be deleted
2.	9	Existing Clause 9 shall be deleted and be replaced with the following : 9. Delivery Contractor shall deliver all Goods to the respective site of SLT. Any damage or loss caused to the Goods/equipment during transportation and delivery shall be borne by the Contractor.
3.	17	Existing Clause 17 shall be deleted and be replaced as follows ; 17 - Payments 17.1 - Payments shall be made within the ceiling limits stated under the Contract Form 17.2 – Payments due under a Purchase Order shall be derived from the Unit Rates agreed hereunder 17.3 – In the event of SLT procuring Concrete Poles under Model 1B, the Contractor shall provide the same for an amount not exceeding the rates stated under the Contract Form. SLT may at its sole discretion revise the rates as stated under the Contract Form and the Contractor shall deliver the Goods at such revised rates. 17.4 – A sum of Rupees LKR500.00 shall be paid for each pole used for FTTH new connection as an administrative fee 17.5 – Payment Terms shall be as follows ; 17.5.1 – Payments under Model 1A 100% payment shall be made within a period of 30 working days from the issuance of the respective Provisional Acceptance Certificate against an invoice of the Contractor certified by SLT 17.5.2 – Payments under Model 1B 17.5.2.1 – 40% advance payment shall be paid on a monthly basis prior to the conduct of the Provisional Acceptance Test (PAT), against an invoice submitted by the Contractor,

FTTH New Connections through Sri Lanka Telecom Services (Private) Limited
L/0733/2025

	Clause Number under the General Conditions of Contract	Amendment/ New addition
		which is prepared based on the estimated number of FTTH new connection installations completed during the previous month. 17.5.2.2 – 60% payment shall be made within a period of 30 working days from the issuance of the Provisional Acceptance Certificate (PAC), issued after the successful Provisional Acceptance Test (PAT) against an invoice of the Contractor certified by SLT. 17.6 - Additional Poles beyond the agreed rates 17.6.1 – The agreed average pole rate shall be 0.15 per connection 17.6.2 – The payment shall be made for additional poles as LKR 10,114.29 17.7 - Additional FTTH Drop Wire delivered beyond the agreed rates over (wire length of 180M per connection shall be delivered Free of Charge (FOC) by the Contractor and no additional payment shall be made by SLT. 17.8 - Monthly invoicing shall be calculated for eligible FTTH New Connections completed within the respective month (After successful Provisional Acceptance Test –PAT). 17.9 - All applicable taxes shall be paid by SLT on actual basis
4.	32	Notices shall be delivered as per the Contract Form
5.	All references to “Specification”, “Technical Specification” throughout the Contract shall mean and refer to “Installation Guideline”.	

Table of Contents

1.	Definitions and Contract Documents.	3
2.	Use of Contract Documents and Information.....	6
3.	Mistakes in Information	6
4.	Performance Security	7
5.	Country of Origin	7
6.	Factory Tests and Inspections	7
7.	Packing of Goods	8
8.	Clearing and Transport of Materials.....	9
9.	Delivery.....	9
10.	Insurance.....	9
11.	Supply and Delivery within Agreed Period and Damages for Delay	10
12.	Long term Support	10
13.	Faulty/Damaged Materials	11
14.	Incidental Services.....	11
15.	As-built Drawing, Basic Information Gathering and Unit Designators	12
16.	Period of Completion	12
17.	Payment	17
18.	Intellectual Property Rights	14
19.	Change Orders	15
20.	variations	16
21.	Contract Amendments	16
22.	Assignment of Work.....	16
23.	Assignment and Subcontracts.....	16
24.	Delays in Contractor's performance.....	17
25.	Force Majeure.....	20
26.	Termination	21
27.	Technical Advice.....	19
28.	Use of SLT Material... ..	22
29.	Arbitration	17
30.	Governing Language	20
31.	Applicable Law	20
32.	Notices.....	20
33.	Taxes.....	21
34.	Coming into force of the Contract.....	21
35.	Acceptance.....	21
36.	Warranty	24
37.	Employment of SLT Labour	26

OSP Unit Rate

38.	Protection of Existing Telecommunications System.....	30
39.	Prevention of Damage	30
40.	Damaged Equipment, Non-delivered Equipment, Wrongly Delivered Equipment and Short delivered Equipment	26
41.	Transfer of Title.....	27
42.	Monthly Progress Report.....	27
43.	Damage to Third Party Property.....	28
44.	Indemnity.....	35
45.	Survival.....	36
46.	Breach.....	37
47.	Non-Solicitation	29
48.	Responsibilities of SLT	29
49.	Responsibilities of Contractor	29

GENERAL CONDITIONS OF CONTRACT

1. Definitions and Contract Documents.

1.1 Definitions

In this Contract, unless the contract otherwise required, the following terms shall be interpreted as indicated, and singular words shall include the plural and vice versa and words importing persons shall include Corporations/firms, etc.

“The Contract” means the principal contract entered into between SLT and the Contractor, as recorded in the Contract form signed by the parties, including all attachment and appendices thereto and all documents incorporated by reference therein. When the context so requires the term “contract” shall also mean and include any future addenda to the Principal Contract.

“Addendum” means a supplement/addition to be signed by the both parties for each future Project/Work based on the terms and conditions of the Principal Contract and when duly signed each such Addendum shall form a part and parcel of the Principal Contract. All such Addenda shall be on the format attached hereto and it shall at no time amend the clauses stated under the Principal Contract.

“SLT” means Sri Lanka Telecom PLC in the Democratic Socialist Republic of Sri Lanka.

“The Tender Price” means the price quoted by the Contractor under this Tender for the full and proper performance of scope of work.

“Contract Price” means the price payable to the Contractor under each and every Addenda for the full and proper performance of its contractual obligations under the said Addenda based on the unit rates which shall form part and parcel of this Contract.

“Project” means the Works to be carried out by the Contractor under this Agreement. each project shall be defined to the Contractor by way of an Addendum executed for each such work to be done.

“Goods” or “Equipment” means all of the, equipment, machinery, and/or other materials, which the Contractor is required to supply to SLT under the Contract.

“Services” or “Works” means services ancillary to the supply of the Goods, such as transportation and insurance, and any other incidental services, such as installations, commissioning, provision of technical assistance, training and other such obligations of the Contractor covered under the Contract;

“The Contractor” means the individual or firm supplying, installing the Goods and services under this Contract and its Addenda.

“Subcontractor” means a natural or juridical person who has entered into an agreement with the Contractor to carry out certain parts of the main contract on behalf of Contractor and with the written consent of SLT

“Chief Executive Officer” means the person holding or acting in the office of the Chief Executive Officer of SLT and his successors in office.

“Project Coordinator” means the person nominated by Contractor in writing to act as Contractor’s representative for the execution of the Project/Work.

“Project Manager” means the authorized representative of SLT to execute and monitor the Physical & Financial progress of each activity under the Contract in consultation with the contractors and sign any Addendum under this Contract on behalf of SLT

“Inspector” means the representative of the person or the persons duly authorized by SLT to act as its Inspector of the Equipment, Materials and Works to be supplied under the Contract.

“Site” means the actual place or places (lands, buildings or other places) to which the Goods are delivered and installed or where the Works are to be done under the Contract.

“Specifications” means Technical Specifications for Out Side Plant Materials & Terminal Equipment related to Subscriber Line and design criteria provided by SLT and the technical specifications developed for the system from time to time by SLT or by Contractor and approved by SLT.

“Effective date of Contract” means the date on which the Notice to Proceed is received by the Contractor. In case SLT specifies a date to commence work on the Notice to Proceed, then the effective date of Contract shall mean such date specified in the Notice to Proceed.

“OSP Work” means work related to Installation of new PSTN lines and removals, Rehabilitation of OSP network, Installation of PEO TV connections, Reconnections, Data connections, development work and outside plant shifting.

“Supplier” means the suppliers approved and short listed by SLT to provide goods or material to SLT for maintenance work of the outside plants.

“Notice to Proceed” means the written notice issued to the Contractor by SLT to commence work.

“Commissioning” means those activities, which take place during the period when the construction of the System is essentially complete for Acceptance Test in the Site.

“Warranty of Title” means the written assurance given by the Contractor to SLT that all goods supplied by the Contractor are of good title and free from all encumbrances.

“Completion of Contract” means the expiration of the Warranty Period or the issuance of Final Acceptance Certificate whichever occurs later under the last Addendum signed hereunder, provided however the Contract shall survive to the extent that it requires to survive due to the nature of specific Clauses that requires survival irrespective of the expiration or the early determination of the Contract Period.

“Provisional Acceptance” means that fabrications, delivery, installation, testing, adjustment and the Acceptance Test have been satisfactorily completed for a System, except twelve (12) months system warranty.

“Provisional Acceptance Certificate” means an official written statement issued by SLT, indicating that each System in the Site has been performed, completed and tested satisfactorily except the Warranty Period. A separate certificate will be issued under each Addenda and when the context so requires Provisional Acceptance Certificate (PAC) shall mean the relevant PAC issued for the relevant Addendum.

“Provisional Acceptance Date” means a date on which the Works in each Site has been completed and SLT is ready to take over Goods and Works in each Site as certified by the relevant Provisional Acceptance Certificate.

“Final Acceptance Certificate” means an official written statement issued by SLT on successful completion of the final Acceptance Tests under each Addendum applicable for all Goods/Equipment/System/Sub System under such Addendum. A separate certificate will be issued under each Addenda and when the context so requires Final Acceptance Certificate (FAC) shall mean the relevant FAC issued for the relevant Addendum.

“Warranty Period” means a period of commencing from the relevant Provisional Acceptance Date under the respective Addendum as specified hereunder.

“Factory Acceptance Certificate” means the written confirmation of acceptance to be issued by SLT after the testing of the Goods or System in accordance with the mutually agreed testing procedures, at the factory or any place defined in the Contract before shipment to the SLT.

“Tender” means the Contractor’s prices offered to SLT for the execution and completion of the Services in each addendum for the supply of the Goods and services based on the unit rates.

“Date of Completion” means the date(s) specified in the Implementation Schedule of each Addendum by which the system or part thereof shall be installed and have successfully completed Provisional Acceptance Test, taking into account all changes of the implementation period as agreed upon.

- 1.1.1 All documents identified in the Items (1) to (6) of Clause 1.1.2 shall be collectively known as contract documents and shall deemed to form and be read and construed as parts of the Contract.

1.1.2 The order of priority of the various Contractual Documents which form part and parcel of this Contract are as follows:

- (1) Contract form
- (2) The Special Conditions of the Contract
- (3) The General Conditions of the Contract
- (4) List of unit rates morefully described in Annex A hereto
- (5) Specimen format of Addenda marked as Annex B.
- (6) Technical Specifications

1.2 These presents shall be considered the Principal Contract between SLT and the Contractor. The addenda to these presents on subsequent Projects/Works will have separate work scope, Bill of Quantities, area and implementation schedules.

2. Use of Contract Documents and Information

2.1. The Contractor shall not, without SLT's prior written consent, disclose the Contract, or any provision thereof, or any specification, plan, drawing, pattern, sample or information furnished by or on behalf of SLT in connection therewith to any person other than a person employed by the Contractor in the performance of the Contract. Disclosure to any such employed person shall be made in confidence and shall extend only so far, as may be necessary for purposes of such performance.

2.2. The Contractor shall not, without SLT's prior written consent, make use of any document or information enumerated in Clause 2.1 except for purposes of performing the Contract.

OSP Unit Rate

- 2.3. All documents, other than the Contract itself, enumerated in Clause 2.1 shall remain the property of SLT and shall be returned to SLT on completion of the Contractor's performance under the Contract.

The Contractor hereby undertakes together with its agents, subcontractors, employees and all licensees under it, that it will abide by the SLT information security policy. In the event the Contractor is required to access SLT internal systems and SLT's Corporate, Financial or Technical information other than the information released by SLT to the public domain the Contractor shall obtain the prior written approval of SLT in the prescribed form from an officer in the capacity of General Manager of SLT or higher based on the recommendation of an officer in the capacity of Deputy General Manager of SLT or higher. SLT reserves the right to disable such access provided to the Contractor for the information and systems under Clause 2.4 hereof at any time, without assigning any reason thereto.

When remotely connected to SLT's corporate network/information processing facilities through personal computer or workstation the Contractor and/or its agents, subcontractors, employees and all licensees shall refrain from getting connected to any other network at the same time.

All Contractors who are provided access to SLT Corporate, Financial or Technical information and SLT internal systems shall be responsible for complying with the information security policy referred hereunder.

The Contractor shall take necessary measures to safeguard SLT's network and information recourses and notify SLT immediately of any and breach or any imminent threats thereof.

The Contractor shall have an agreement with its employees agents, subcontractors, employees and all licensees to ensure that the information of SLT shall not be disclosed and that the confidentiality of the information shall be secured.

- 2.4. In the event SLT has provided access to the Contractor for systems or data containing information related to SLT's Corporate, Financial or Technical details or otherwise, inter alia for the purpose of installation, maintenance, integration, vulnerability assessments or technical support, upon completion of the work, the Contractor shall notify SLT to disable forthwith the access provided to the Contractor. Any failure on the part of the Contractor to adhere to these provisions shall amount to a breach of Contract on the part of the Contractor.
- 2.5. The Documents referred under Clause No.2 hereof shall mean and include the documents

in hard copy or softcopy.

3. Mistakes in Information

- 3.1 The Contractor shall be responsible for any discrepancies, errors or omissions in the drawings, designs and other written information supplied by the Contractor as a part of the plans, as built drawings, Contract, whether they have been approved by SLT or not, provided that such discrepancies, errors, or omissions are not due to inaccurate drawings or information furnished by SLT.
- 3.2 The Contractor shall carry out at its own expense any alterations or remedial work necessitated by reason of discrepancies, errors or omissions due to the fault of the Contractor and shall modify the drawings, designs and other written information. Accordingly, or in the event if the same be done by or on behalf of SLT, the Contractor shall bear all costs incurred thereby in agreement with SLT.

4. Performance Security

- 4.1 Within Seven (07) days from the Notice to Proceed by SLT, the Contractor shall furnish a performance security to SLT in the amount of ten per cent (10%) of the value of the respective Addendum as stated under Notice to Proceed in the form provided under the tender document from any commercial Bank operating in Sri Lanka and acceptable to SLT.
- 4.2 SLT shall be entitled to encash the Performance Security in its entirety or in part in the event of the Contractor's failure to complete its obligation/s under the Contract.
- 4.3 The performance security shall be denominated in the currencies of the Contract and shall be in the form of an irrevocable and unconditional bank guarantee. The said bank guarantee shall remain in force until the expiration of the Warranty Period or the issuance of Final Acceptance Certificate whichever occurs last under the respective Contract or Addendum and it shall be the responsibility of the Contractor to cause the validity period of the Performance Security to be extended for such period(s) if the work schedule is extended until the expiration of the Warranty Period or the issuance of Final Acceptance Certificate whichever occurs last under the Contract or relevant Addendum signed during the tenor of this Contract.
- 4.4 Subject to Clause 4.2 herein Performance security will be discharged or returned by SLT to the Contractor not later than thirty (30) calendar days following the date of expiration of the Warranty Period or the issuance of Final Acceptance Certificate whichever occurs last under the Contract or relevant Addendum.
- 4.5 However in the event the value of each Addendum is less than One Million (excluding taxes), the Contractor shall not be required to furnish a performance security as

mentioned above.

5. Country of Origin

- 5.1 All goods and services supplied under the Contract and/or its addenda shall have their origin in the countries and territories as quoted in the Tender proposal.
- 5.2 For purposes of this Clause, “Origin” means the place where Goods are mined, grown, or produced, or from where the services are supplied. Goods are produced when, through manufacturing, processing, or substantial and major assembling of components, a commercially recognized new product results that which is substantially different in basic characteristics or in purpose or utility from its components.
- 5.3 The origin of Goods and Services is distinct from the nationality of the Contractor.

6. Factory Tests and Inspections

- 6.1 SLT or its representatives shall have the right to inspect and/or to test the Goods to confirm their conformity to the Specifications at no extra cost to SLT and the Technical specifications shall specify what inspections and tests SLT requires and where they are to be conducted. SLT shall notify the Contractor in writing in a timely manner, of the identity of any representatives retained for these purposes.
- 6.2 The Contractor shall submit three (03) copies of the factory test procedure of the offered system to SLT at least 2 months prior to the starting date of factory

OSP Unit Rate

inspection/acceptance test which shall indicate the date, place and items to be tested detailed test procedures and test criteria.

- 6.3 If SLT require any additional test to be performed, provision shall be made to carry out the same.
- 6.4 Contractor shall furnish results of his own test carried out on goods and services prior to extending the invitations to SLT for each inspection.
- 6.5 Contractor shall give at least one (01) month notice of the date on which any particular item/items will be ready for test at works to enable SLT to appoint the inspector/s, deemed necessary for tests. Such items shall not be packed for dispatch until inspected, tested and approved by the inspector.
- 6.6 The inspections and tests may be conducted on the premises of the Contractor or its Subcontractors, at the point of delivery, and/or at the Goods' final destination. If conducted on the premises of the Contractor or its Subcontractors, all-reasonable facilities and assistance, including access to drawings and production data shall be furnished to the inspectors at no charge to SLT.
In case the authorized representatives of SLT are not present in such place and on such date as notified the factory inspection may be conducted in the absence of such representative subject to prior written consent of SLT.
- 6.7 Should any inspected or tested Goods and services fail to conform to the Specifications, SLT may reject the goods and services, and the Contractor shall either replace the rejected Goods and services or make alterations necessary to meet the Specification requirements free of cost to SLT.
- 6.8 When factory inspections have been completed to the full satisfaction of the inspectors, the inspectors shall issue a "Factory Acceptance Certificate" in which they shall state the result of the inspection and the date on which the witnessing of the inspection was conducted.
- 6.9 SLT's right to inspect, test and where necessary, reject the Goods or stop the performance of the Service/ works shall no way be limited or waived by reason of the Goods or services having previously been inspected, tested or observed and passed by SLT or its representative.
- 6.10 Nothing in Clause 6 shall in anyway release the Contractor from any warranty or other obligations under this contract.

7. Packing of Goods

The Contractor shall pay particular attention to the following:

- 7.1 All Goods shall be suitably packed.

OSP Unit Rate

- 7.2 All Goods to be supplied under this Contract for delivery to SLT shall be carefully packed in strong cases, suitable for long distance transportation, changes in climates and protected against rust, moisture, rain, normal handling shock, corrosion and freezing and consolidated in container, if needed.
- 7.3 The Contractor shall be held responsible for the equipment being so packed and for its delivery intact and undamaged at its final destination.
- 7.4 The packages of tools and accessories included in the Goods shall be labeled by the Contractor, indicating project Number, Site and Name of equipment. Spare parts and tools shall be marked with words "Spare Parts" or "Tools" beside the above particulars.
- 7.5 The packages shall be marked with "Handle with care", "This side up" and "Keep Dry" in English with appropriate marks required.
- 7.6 Packing Lists shall show the detailed contents of each package, inclusive of net weight, gross weight and dimension of case.

8. Clearing and Transport of Materials

The Contractor shall be responsible for the expeditious clearing of materials from the harbor and transporting them to respective sites and all costs including custom duties taxes, levies and cost of local transporting shall be borne by the Contractor.

9. Delivery

Contractor shall deliver all locally purchased and imported goods to SLT and SLT's acceptance of all such goods shall be the issuance of the Final Acceptance Certificates. Any damage or loss caused to the goods/equipment during transportation and delivery shall be borne by the Contractor.

10. Insurance

The Contractor shall at his own expense effect the following insurance against all loss or damage from whatever cause for which he is responsible under the terms of the Contract and its each Addendum.

10.1 Workmen's Compensation Insurance

The Contractor shall comply with the provisions of Workmen's Compensation Ordinance of Sri Lanka and any statutory modifications or amendments thereof. The Contractor shall effect a policy/policies of insurance against liability to pay damages or compensation to his workmen or other persons employed on the work connected with the Contract and shall continue to keep in force such insurance during the period of the Contract and/or its addenda. The Contractor shall ensure that all of his Subcontractor(s) shall effect the policies of insurance for the same purpose and Contractor shall require Subcontractor(s) to produce such policies for his inspection. The policies taken out by

OSP Unit Rate

Contractor and Subcontractor(s) shall be affected in the name of SLT and be with the Insurance Corporation of Sri Lanka or other insurer approved by SLT.

10.2 Erection All Risk Insurance

This insurance shall cover all risks during the Contract or its addenda, including physical loss of, or damage to, all Goods and Works to their full value as per the Contract until the issuance of the Final Acceptance Certificate by SLT.

10.3 Comprehensive Liability Insurance

Prior to the commencement of the works under the Contract, and/or its addenda the Contractor shall provide comprehensive liability coverage including liability coverage for

103.1 Bodily injury including injury by automobiles

103.2 Property damage by automobiles

103.3 Property damage by other than automobiles

The term "automobiles" as used herein, shall include all powered vehicles of any nature used by the Contractor in executing the works under the Contract.

10.4 Indemnity against Claims of Employees

The Contractor shall indemnify SLT against any claims by or in respect of employees of the Contractor under the Workmen's Compensation Ordinance (Chapter 117) or any applicable statutory provisions, regulatory provisions or contractual obligations.

11. Supply and Delivery within Agreed Period and Damages for Delay

11.1. Should the Contractor anticipate at any time during the execution of the Contract that the Contractor will be unable to Supply or Deliver the Goods/Equipment within the time specified in the Contract, the Contractor shall at once give notice accordingly in writing to the Chief Executive Officer with a copy to General Manager, Procurement of SLT explaining the cause for the delay. In the case of delay, the Chief Executive Officer/ SLT or the Officer authorized by him shall have the option of either granting an extension or granting an extension with liquidated damages or terminating the Contract on the basis of default by the Contractor due to delays by the Contractor under 11.1 hereof.

11.2. If the extension is granted to the Contractor subject to liquidated damages, SLT shall in addition to any other remedies available to SLT under this Contract, a deduct from the Contract Price and/or recover such amounts from the Performance Security as liquidated damages. The percentage of the Contract Price to be deducted as liquidated damages per day shall be calculated using the following formula;

$$y=ax^n$$

y = Liquidated damages percentage (subject to the maximum of 30% of the Contract Price)

x = number of days delayed

OSP Unit Rate

a = = Liquidated damages for per day delay
n = = Liquidated damage index

113. Period of delay will be counted if work cannot be completed within the time specified in the Contract. SLT may terminate the Contract upon the liquidated damage reaching the maximum of 30% of the Contract Price or sooner as determined by SLT. In the event liquidated damages cannot be recovered from the amounts outstanding under the Contract Price and/or the Performance Security Contractor shall pay unrecovered liquidated damages to SLT on submission of SLT’s claim
114. The Contractor shall obtain an extension to the period of validity of Performance Security in accordance with Clause 04 in the event the period of Contract is extended due to an extension granted under this clause.

12. Long Term Support

- 12.1 The Contractor undertakes to supply, under reasonable technical and commercial conditions, during the period up to the end of fifteen (15) year design life from the Completion of Contract any spare part or any replacement equipment, which is characteristically and dimensionally equal or equivalent to those of the equipment to be replaced, however acceptable to SLT and any relevant training courses which may be necessary for the maintenance of Goods/Equipment. The applicable prices will be the prevailing market prices.
- 12.1 In the event the contractor is unable to provide long terms support to SLT as required herein due to any reason whatsoever or in the event the Contractor is ceasing the production of the Goods or Equipment, for any reason whatsoever, the Contractor shall provide SLT access to the blueprints, source codes and other intellectual properties of the Contractor which are required for the production of the Goods or Equipment or any part of same.

13. Faulty or Damaged Materials

Contractor shall replace all faulty and un-repairable goods and materials and shall attend to the proper disposal of the same. However, no goods or material that has SLT logo printed/embossed into it shall be sold by the Contractor. Nor shall the Contractor purchase any goods or materials already rejected by SLT at any time from the short listed Suppliers.

14. Incidental Services

- 14.1 As specified hereof, the Contractor may be required to provide any or all of the following Services.
- 14.1.1 Performance or supervision of on site assembly and/or start-up of the supplied Goods;
- 14.1.2 Furnishing of tools required for assembly and/or maintenance of the supplied

Goods;

- 14.1.3 Furnishing of a detailed operations and maintenance manual for each appropriate unit of the supplied Goods;
- 14.1.4 Furnishing of detailed drawings for each installed unit of the supplied Goods;
- 14.1.5 Performance and/or supervision and/or maintenance and/or repair of the supplied Goods for a period of time agreed by the parties, provided that this Service shall not relieve the Contractor of any warranty obligations under this Contract; and
- 14.2 Prices charged by the Contractor for the proceeding incidental services, if not included in the Contract Price for the Goods, shall be free of charge.
- 14.3 If so required, the Contractor shall conduct training for SLT's personnel, free of charge, at the Contractor's plant and/or on site, in assembly, start-up, operation, maintenance and/or repair of the supplied Goods.

At such training the Contractor shall issue training manuals and connected literature to the trainees and a copy of the same shall be sent to SLT to the following address:

GM/Training and Development,
Sri Lanka Telecom PLC,
Lotus Road, Colombo 01,
Sri Lanka.

Upon completion of the required trainings, the Contractor shall obtain a "Training Completion Certificate" from SLT prior to the issuance of the Provisional Acceptance Certificate.

15. As-built Drawing, Basic Information Gathering and Unit Designators

- 15.1 As described in the Technical Specification, as-built drawings on both soft and Hard format (tissue and blue prints) shall be submitted to SLT upon the completion of Out Side Plant work relevant to the exchange area (cable and civil), as specified in the Addenda of this Principal Contract. The final payment will be delayed until the submission of as-built drawings.
- 15.2 Basic Information Gathering
The Contractor shall prepare plans, after carrying out the basic information gathering based on the guide lines given by SLT. These guidelines shall be strictly followed, enabling SLT to expand outside plant network in an economical manner.
- 15.3 Unit Designators.
The Out Side Plant works shall be carried out based on the unit designators defined in the Technical Specification and no additional unit designators will be entertained for any reason during the execution period set down in the relevant Addenda without prior written confirmation from SLT.

16. Contract Milestones

- 16.1 This Contract shall be valid and in force from to..... All Addenda to this Contract shall be signed during the said period unless extended on mutual agreement.

OSP Unit Rate

16.2 The Contractor shall successfully complete work and the Provisional Acceptance Tests (Clause 35.5) and the Certificates of Provisional Acceptance shall be obtained within the

period indicated under the implementation schedule which shall be a part and parcel of the relevant Addendum, from the date of receipt of the Notice to Proceed.

- 16.3 The Contractor shall successfully complete the respective final Acceptance Tests and obtain the Final Acceptance Certificate within a period of from the date of the corresponding Provisional Acceptance Certificate issued under the respective Addendum.

17. Payment

The method and conditions of payment to be made to the Contractor for each project/Works under the Contract shall be as follows.

17.1 Payment for New Connections, Removals, PEO TV Connections, Reconnections and Data Connections.

- 17.1.1 Contractor shall submit the invoices monthly in batches (Maximum number of invoices per batch will be 100) and the Invoices shall be forwarded to the respective Project Manager.
- 17.1.2.% of the Invoice value shall be paid within 30 days from receipt of the Original Invoice.
- 17.1.3.% of the Invoice value shall be paid after sample checking.
- 17.1.4. The final installment of% will be paid within Thirty (30) working days from issuance of the Final Acceptance Certificate against an invoice of the Contractor as certified by SLT.

17.2 Payment for Development Works

The Invoiced price shall be paid on measure and pay basis upon submission of the invoices after completion of work and upon certification of DGMM and GMM of the relevant area or the representative of DGM/Projects.

Payment shall be made by SLT within Thirty (30) days of the submission of an invoice by the Contractor.

17.2.1 Payments for Copper Development Work

The Contractor shall raise the final invoice for the full value of the relevant Addendum after successful completion of Provisional Acceptance Test and upon the certification of the DGM.

17.2.2 Payment for Optical Fiber Development Work

- 17.2.2.1 Payments for Optical Fiber work which the value of the Addendum is more than 5 Million.

Contractor may raise invoices for progress payments upon the completion of part of the scope to the satisfaction of SLT upon the certification of DGM or his representative.

However Contractor shall raise the final invoice after successful completion of Provisional Acceptance Test upon the certification of DGM or his representative.

- 17.2.2.2 Payments for Optical Fiber work which the value of the addendum is less than 5 Million. Contractor shall raise invoice after successful completion of entire work and upon the certification of DGM or his representative.

17.3 Payments for MSAN Related works

Invoices received by the Regional Staff should be submitted to the Regional Programme Office. Bill of Quantities will be checked against the plan and 100% payment will be paid within a maximum of 40 days.

17.4 Payment of Rehabilitation

The Contractor shall raise the final invoice for the Full value of the relevant Addendum after successful completion of Provisional Acceptance Test and upon the certification of the DGM.

Invoices received by the Regional Staff should be submitted to the Regional Programme Office. Bill of Quantities will be checked against the plan and 100% payment will be made within a maximum of 40 days.

17.5 Penalty for Inaccurate Invoices

Following penalty will be applied for inaccurate invoices of the Contractor which are found during the invoice sample checking process.

Amount Deducted =	$\frac{\text{Invoiced Quantity of the rejected samples} - \text{Actual Quantity of the rejected samples}}{\text{Actual Quantity of the rejected samples}} \times \frac{\text{No of samples rejected}}{\text{No of samples checked}} \times \text{Total Invoiced Quantity} \times \text{Unit Rate}$
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18. Intellectual Property Rights

- 18.1 The Contractor warrants that the services/Works provided or rendered and Goods and/or Equipment and all items of equipment supplied under this Contract to SLT do not, alone or in combination with each other, infringe any patent or other intellectual

property rights and the Contractor shall defend and indemnify and hold indemnified SLT completely harmless at all times from all damages, costs and expenses of the alleged infringement of any patent or other intellectual property rights, which by final judgment, or settlement or by order or court may be assessed or imposed against SLT on account of such infringement.

- 18.2 The Contractor shall defend SLT at the Contractor's own cost any or all such suits or proceedings. If the service/works performed under the contract or Equipment and Software or any item thereof is held to constitute an infringement in such action, the Contractor at his own expense will have the choice of taking one or more of the following courses of action;

- (1) Replace the service or item with a non-infringing item or service or service.
- (2) Procure for SLT the right to continue to use such services and works or Equipment and Software or item.
- (3) Modify the service, Equipment and Software or any item thereof so that the said service, Equipment and Software thereof shall cease to constitute an infringement of any such rights however only with the expressed written consent of SLT.

19. Change Orders

- 19.1 SLT may at any time, by a written notice given to the Contractor in terms of Clause 21, hereof make changes within the General Scope of the Contract and/or its Addenda in any one or more of the following.

19.1.1 Drawings, as built drawings, plans, designs or specifications, where Goods to be furnished under the Contract and/or its Addenda are to be specifically manufactured for SLT:

19.1.2 Method of delivery or packing:

19.1.3 Place of delivery:

19.1.4 Services to be provided by the Contractor

19.1.5 Implementation Schedules of the morefully stated under the Addenda.

- 19.2 Upon notification by SLT of such change, the Contractor shall submit to SLT an estimate of costs, based on the unit rates given in the **Annex A1 or Annex A2** hereto as applicable, for the proposed change (hereinafter refereed to as the Change or Changes), including any change in the BOQ on payments, within ten (10) calendar days of receipt of notice of the Change and shall include an estimate of the impact (if any) of the Change on the delivery dates under the Contract, as well as a detailed schedule for the execution of the Change, if applicable.

OSP Unit Rate

- 19.3 The Contractor shall not perform Changes in accordance with Clause 19.1 above until SLT has authorized a Change Order in writing on the basis of the estimate provided by the Contractor as described in Clause 19.2 above.
- 19.4 If any such change causes an increase or decrease in the cost of, or the time required for, the Contractors performance of any part of the Work under the Contract and/or its addenda an equitable adjustment shall be made in the Contract Price or delivery schedule, or both morefully set down in each relevant addendum and the Contract and/or its relevant addendum and/or its addenda shall accordingly be amended. Any claims by the Contractor for adjustment under this clause must be asserted within thirty (30) days from the date of Contractors receipt of SLT's change order.
- 19.5 Legal effect of change order
The contract and/or its addenda shall continue to bind the parties except to the extent amended by such change order in terms of 19.3 hereof, the terms and conditions of which shall deem to be incorporated to the contract.

20. Variations

The Contractor shall carry out the detailed survey on the conditions of the Sites after signing of each Addendum under this Contract. The Bill of Quantities under each Addendum may be changed pursuant to such survey and the Contract Price / value under an Addendum may increase or decrease based on the fixed unit rates approved by SLT as stated under Annex A1 or Annex A2 hereto, as applicable.

21. Contract Amendments

Subject to Clause 19 of General Conditions of Contract, no variation in, or modifications of, the terms of the Contract and/or its addenda shall be made except by written amendment signed by both parties.

22. Allocation of Work

For each Project an Addendum shall be signed by the relevant Project Manager of SLT and the Contractor which shall include a Bill of Quantities, Scope of Work and an Implementation Schedule for the Project/Work. The terms of this Principal Agreement shall be binding on parties at all times.

23. Assignment and Subcontracts

- 23.1 The Contractor shall not assign, in whole or in part, his obligations to perform under the Contract and/or its Addenda to any third parties, except with SLT's prior written consent. SLT shall not be obliged to recognise any power of attorney issued or purported to have been issued by the Contractor.
- 23.2 The Contractor shall notify SLT in writing of all subcontracts awarded under the Contract and/or its addenda if not already specified in this tender. Such notification, in

his original Contract or later, shall not relieve the Contractor from any liability or obligation under the Contract and/or its addenda and he shall be responsible for the acts, defaults and negligence of any Subcontractor, his agents, servants or workmen as fully as if they were the acts, defaults or negligence of the Contractor.

- 23.3 The Contractor shall submit to SLT copies of all Subcontracts with the prices, within two (02) months after the Notice to Proceed. The Contractor shall check and correct the subcontracts to be in line with the Contract and/or its addenda and any such parts or portions of the subcontracts that are not in conformity with the Contract shall deem to be invalid and no force in law.

24. Delays in Contractor's performance

- 24.1 Delivery of Goods and Performance of Services shall be made by the Contractor in accordance with the time schedule specified under the Contract or its relevant Addendum.
- 24.2 Any delay by the Contractor unacceptable to SLT in the performance of his obligations, subject to 24 hereof, shall render the Contractor liable to any or all of the following sanctions: forfeiture of its performance security, imposition of liquidated damages, and/or termination of the Contract in whole or in parts for default.
- 24.3 If at any time during performance of the Contract, the Contractor or his subcontractor(s) should encounter conditions impeding the timely delivery of the Goods and performance of Services, the Contractor shall promptly notify SLT in writing of the fact of the delay, its likely duration and its cause(s). As soon as after receipt of the Contractor's notice, SLT shall evaluate the situation and may at its discretion extend the Contractor's time for performance, in which case the extension shall be ratified by the parties by amendment of the Contract.
- 24.4 Clause 7 of the Addenda relevant to new connections shall supersede any term stated under this clause 24.

25. Force Majeure

- 25.1 If either party is temporarily unable by reason of Force Majeure to meet any of its obligations under the Contract and/or its Addenda, and if such party gives to the other party written notice of the event within fourteen (14) days after its occurrence, such obligations of the party that it is unable to perform by reason of such event shall be suspended for as long as the force majeure condition exist.
- 25.2 Neither party shall be liable to the other for loss or damage sustained by such other party arising from any event referred to in this Clause 25 or delay arising from such event.
- 25.3 The term "Force Majeure" as employed herein, shall include but not be limited to acts of God, strikes, lock-outs or other industrial disturbances, acts of the public enemy, wars,

terrorism, blockades, insurrection, riots, epidemics, landslides, earthquakes, storms, lightning, floods, washouts, civil disturbances, explosions and any other events not within control of either party and which by the exercise of due diligence neither party is able to overcome.

- 25.4 If a Force Majeure situation arises, the Contractor shall promptly notify SLT in writing of such condition and the cause thereof. Unless otherwise directed by SLT in writing, the Contractor shall continue to perform its obligations under the Contract and/or its addenda as far as is reasonable and practical, and shall seek all reasonable alternative means for performance not prevented by the Force Majeure event. In case of delays in the date of completion due to any of the event mentioned above, the date of completion shall be extended accordingly.

26. Termination

At all times material to this Contract, unless otherwise expressly terminated for any of the following reasons, the Principal Agreement shall survive irrespective of any termination of one or more of its addenda. However, in the event the Principal Agreement is expressly terminated, all its addenda shall stand terminated irrespective of whether they were expressly terminated or not.

26.1 Termination for Default

- 26.1.1 SLT may, without prejudice to any other remedy for breach of the Contract and/or its Addenda, by written notice of default sent to the Contractor, terminate the Contract and/or its Addenda in the whole or in part:
- (a) If the Contractor fails to deliver any or all of the Goods or Equipment or install or commission any Services or Works within the time period(s) specified in the relevant addenda, or any extension thereof granted by SLT pursuant to Clause 24.3 of General Conditions of Contract;
 - or
 - (b) If the Contractor fails to perform any other obligation(s) under the Contract and/or its addenda.
- 26.1.2 In the event SLT terminates the Contract and/or its addenda in whole or in part, pursuant to Clause 26.1.1, SLT may procure from a third party, upon such terms and in such manner as it deems appropriate, Goods Equipment, Services or works, as the case may be, similar to those undelivered, and the Contractor shall be liable to SLT for any excess costs incurred by SLT for such similar Goods Equipment, Services or works. However, the Contractor shall continue performance of the Contract to the extent not terminated.

26.2 Termination for Insolvency

SLT may at any time terminate the Contract by giving written notice to the Contractor, without compensation to the Contractor, if the Contractor becomes bankrupt or otherwise insolvent, provided that such termination will not prejudice, affect any right of action or remedy which has accrued or will be accrued or will accrue thereafter to SLT

26.3 Termination for Convenience

SLT may by written notice sent to the Contractor, terminate the Contract and/or its addenda, in whole or in part at any time for its convenience. The notice of termination shall specify that termination is for SLT's convenience, the extent to which performance of work is terminated, and the date upon which such termination becomes effective. The Contractor shall continue performance of the Contract to the extent not terminated. SLT shall not make any payment for any license component irrespective of the same being delivered or being ready for delivery.

27. Technical Advice

The Contractor shall ensure the availability of expert technical advisory services on Goods/Equipment and/or Services/Works pertaining to the systems offered commencing from the date of installation at least on a correspondence basis, free of charge, as and when required by the SLT during the life span of the Goods/Equipment and/or Services/Works offered systems.

28. Use of SLT Material

If SLT provides the materials to the Contractor the Contractor shall submit his invoice based on the unit rates under the category II & III only. Special identification code shall be printed/embossed for the Contractor provided materials. Contractors shall use only SLT Standardized Materials from the SLT short listed Suppliers.

29. Dispute Resolution**29.1. IF THE CONTRACTOR IS A LOCAL ENTITY**

Any dispute, controversy or claim arising out of or relating to this Contract, or the breach, termination or invalidity thereof, if not amicably settled within a period of sixty (60) days of the first written notice thereof being sent to one party by the other party, shall be referred to the exclusive jurisdiction of a competent Court of Sri Lanka.

29.2 IF THE CONTRACTOR IS A FOREIGN ENTITY

Any dispute, controversy or claim arising out of or relating to this Contract, or the breach, termination or invalidity thereof, if not amicably settled within sixty (60) days of the first written notice thereof being sent to one party by the other party, shall be referred to arbitration, by a panel of three (3) arbitrators, one each to be appointed by the Parties and the third arbitrator, who shall be the Chairman of the Panel of Arbitrators, to be appointed

OSP Unit Rate

by the said two arbitrators, in accordance with the United Nations Commission on International Trade Law Arbitration Rules (UNCITRAL) as at present in force. Arbitration shall be held in Sri Lanka and the language of Arbitration shall be English. For the purpose of Arbitration the appointing authority shall be the Institute for Commercial Law and Practice (ICLP) Sri Lanka.

30. Governing Language

- 30.1 The Contract and/or its Addenda shall be written in English, as specified by SLT in the Instructions to Contractors. All correspondence and other documents pertaining to the Contract which are exchanged by the parties shall be written in the English language.
- 30.2 If any printed documents written in any other language are furnished, the English translation shall have to be certified by the relevant embassy or High Commission. For purposes of interpretation of the Contract and/or its addenda, the English transition shall govern.

31. Applicable Law

The Contract and/or its Addenda shall be interpreted in accordance with the laws of the Democratic Socialist Republic of Sri Lanka.

32 Notices

- 32.1 Any notice given by one party to the other pursuant to the Contract shall be sent in writing, e-mail or by facsimile to the address and/or the number hereinbelow provided, or to such addresses the parties shall specify from time to time with written notice to the other.

<u>SLT</u>	
Chief Executive Officer	with copy to
Sri Lanka Telecom PLC	GM/Supply Chain Management
Sri Lanka Telecom Headquarters	Sri Lanka Telecom PLC
Lotus Road	Sri Lanka Telecom Headquarters
Colombo 01	Lotus Road
Sri Lanka	Colombo 01
	Sri Lanka
Telephone : +94 11 2 335 010	Tel : +94 11 2 021351
Fax : +94 11 2 424 800	E-mail : e_proc@slt.com.lk

CONTRACTOR

.....
.....
.....
.....
Tel :

OSP Unit Rate

Fax :

E-mail :

32.2 A notice shall become effective as follows:

- (a) In the case of personal delivery or delivery by courier or registered mail, on delivery.
- (b) In the case of e-mail or facsimile, twenty-four (24) hours after sending the e-mail or confirmed transmission, or if the said date is a holiday on the next working day.

33. Taxes

33.1 Taxes such as VAT payable in Sri Lanka upon any goods / or equipment imported for installation under the contract and not to be re exported shall be paid by SLT.

33.2 Where applicable Withholding Tax (WHT) will be deducted by SLT from any payment(s) made to the Contractor as per the tax laws of Sri Lanka.

A Contractor may be exempted or charged at a lower rate of WHT if he can produce to SLT a direction from the Department of Inland Revenue, Sri Lanka to that effect.

A WHT certificate will be issued by SLT for all the deductions made.

33.3 The Contractor who should be registered for VAT shall submit to SLT complete and sequentially numbered invoices stating the VAT component separately and such total tax invoices shall be paid by SLT

33.4 However personal income tax and corporate income tax of the Contractor, the Contractor's employees or his sub contractors payable whether in Sri Lanka or outside Sri Lanka shall be borne by the contractor.

33.5 Any taxes outside Sri Lanka shall not be borne by SLT.

33.6 Any taxes whether in Sri Lanka or outside Sri Lanka by Subcontractors or employees of the Contractors shall not be borne by SLT.

34. Coming into force of the Contract

34.1 The Contract shall come in to force on the date on which all of the following conditions have been fulfilled.

- i.) Signing of the Contract Form by duly authorized representatives of SLT and the Contractor.
- ii) The submission of the performance security by the Contractor as specified in the Clause No.4 hereof

34.2 The Contractor shall commence work after the Contract comes into force pursuant to Clause 34.1 above and on receipt of the Notice to Proceed for each assigned work.

34.3 The Addenda shall come into force pursuant to Clause 34.1 above and signing of the relevant Addendum

35. Acceptance**35.1 General**

The Goods/Equipment/Services/Works shall be accepted as a whole in accordance with Technical Specifications as provided for in Contract Document and/or its addenda for Supply, and Delivery of Goods/Equipment, and/or Installation, Testing and Commissioning of Services/Works.

35.2 Acceptance Test Program

At least one calendar month before the estimated date of start of the Acceptance Tests as provided for herein and/or in Technical Specifications under the Contract, the Contractor shall submit to SLT for approval a test program and an Acceptance Handbook for the conduct of the Acceptance Tests. SLT reserves the right to include any test items deemed necessary.

35.3 Acceptance Tests

In order to determine the compliance with the requirements of Technical Specifications for each Projects/Works, the Contractor shall carry out tests for Provisional Acceptance and Final Acceptance as described in the respective Addenda. Inspections and Tests for each System Goods/Equipment/Services/Works as may be determined by SLT in accordance with the procedures as set forth in this Clause 35 and the respective Addenda. All such tests shall be performed by the Contractor and shall be witnessed by SLT.

35.4 Notice of Acceptance or Rejection**35.4.1 Within fifteen (15) calendar days of receipt of the initial report of the Provisional Acceptance Tests results, SLT shall notify the Contractor either:**

- (a) that SLT propose to issue a Provisional Acceptance Certificate in accordance with Clause 35.5 below, or
- (b) That the SLT will not issue a Provisional Acceptance Certificate.
- (c) that SLT will issue a Provisional Acceptance Certificate subject to conditions, which shall be specified as described in Clause 35.5

35.4.2 On receipt of a notice pursuant to Sub-clause 35.4.1 here above, the Contractor may within 15 days make representations to SLT in explanation of disputed results of the Acceptance Tests and SLT may, if satisfied with explanation, issue a fresh notice pursuant to Sub-clause 35.4.1 here above which shall be deemed to have been issued on the date of the original notice under Sub-clause 35.4.1 here above.**35.5 Provisional Acceptance**

OSP Unit Rate

- 355.1 When SLT is satisfied with the results of the Acceptance Tests that Goods and Services have been completed in accordance with the Specifications and other requirements of the Contract and its Addenda, SLT shall issue a Provisional Acceptance Certificate and Goods/Equipment/Services/Works shall be deemed to be provisionally accepted and absolute and exclusive right, title and interest to Goods/Equipment/Services/Works shall vest in SLT on the deemed date of issuance of the notice under Clause 35.4.1 here above or the actual Provisional Acceptance Date whichever occurs later.
- 355.2 The Provisional Acceptance Certificate may be qualified or may have annexed to it an agreed list of outstanding items and the time table for the remedy of such outstanding items. In such a case, and pursuant to the list of outstanding items, SLT is entitled to retain a part of payment due upon issuance of the Provisional Acceptance Certificate.
- 355.3 In the event the Provisional Acceptance Certificate is not issued SLT shall have the right either to terminate the Contract and/or the relevant Addendum or grant further time to the Contractor for Supply and Delivery of Goods/Equipment again and/or Install and Commission Services/Works again. In such an event the provisions of Clause 35 hereof shall apply.
- 355.4 The Contractor shall remedy the deficiencies indicated in all such listed items, in accordance with the time table annexed to the Provisional Acceptance Certificate, so as to ensure full conformity with the requirements of the Contract and so long as any such items are outstanding, the Contractor shall continue to carry the risk in respect of such items and be responsible for its maintenance.
- 355.5 As from the date of vesting of title determined in accordance with Sub-Clause 35.5.1 here above, SLT shall assume the risk in respect of all parts of Goods/Equipment/Services/Works (except as mentioned in Sub-Clause 35.5.2 and 35.5.3 here above) and responsibility for its maintenance, subject to any other arrangement for maintenance and Warranty.
- 355.6 If SLT is not satisfied that the results of the Provisional Acceptance Tests justify the issuance of Provisional Acceptance Certificate but nevertheless wishes to put a part of or all the Goods/ Equipment/Services/Works into commercial service, SLT will notify the Contractor prior to putting the Goods/Equipment and/or Services/Works into commercial service.
- 35.6 Rectification of Defects
- If the Provisional Acceptance certificate is not issued due to defects in Goods or services then SLT shall notify the Contractor of the defects and a period in which the fault(s) shall be remedied to the satisfaction of SLT. SLT shall issue a notice detailing the defects which require remedying and the period of time in which rectification is to occur and the issue of such notice shall not prejudice any of SLT's other rights or remedies under the Contract. The Contractor shall issue further results of the Acceptance Test

OSP Unit Rate

after such remedial action has been taken by the Contractor within such period of time as state therein and this shall be considered in terms of Clause 35.4.1 (a)

35.7 Final Acceptance

35.7.1 Not later than thirty (30) calendar days after the satisfactory completion of the Final Acceptance Tests, as described herein and/or in Technical Specifications, and provided that the Contractor has fulfilled his commitments under the Contract, SLT shall issue a Final Acceptance Certificate for each System respectively.

35.7.2 The issuance of this Certificate shall not be unreasonably withheld or delayed, but in the event that a pattern of failure or pattern of degradation develops that is likely to cause Goods/Equipment and/or Services/Works fail to meet the requirement of the Contract or such other performance levels agreed upon by SLT over the 15 years design life of the Goods/ Equipment and/or Services/Works, Final Acceptance may be withheld until it can be demonstrated to the satisfaction of SLT that such failures would not continue. In such event, the Warranty Period shall be extended until the Final Acceptance Certificate is issued.

35.7.3 The Final Acceptance Certificate shall not apply to those parts which may have been replaced during the Warranty Period or parts having been the subject of an extension of warranty according to the provisions of Sub-Clause 36.2 hereof.

35.7.4 At the discretion of SLT, the Final Acceptance Test Program may consist of a repetition of a part or the whole of the Provisional Acceptance Test Program or may be a new program all together. SLT reserves the right to dispense with the Final Acceptance Test.

35.8 Cost of Acceptance

All expenses incurred by the Contractor (including testing, apparatus and technical staff) in the execution of Acceptance procedures shall be borne by the Contractor.

36. Warranty

36.1 The Contractor shall warrant to SLT that Goods/Equipment and/or Services/Works supplied under the Contract will comply strictly with the Contract, shall be first class in every particular case and shall be free from defects. The Contractor shall further warrant to SLT that all materials, equipment and supplies, furnished by the Contractor or its Sub-Contractors for the purpose of Goods/Equipment and/or Services/Works will be new, merchantable; of the most suitable grade, and fit for their intended purposes. The Contractor shall warrant that the services to be carried out under this Contract and/or its Addenda will conform with generally accepted professional standards and engineering principles.

OSP Unit Rate

- 36.2 The Warranty Period of Goods/Equipment and/or Services/Works shall be for
(.....) years from the Provisional Acceptance of Goods/Equipment and/or Services/Works unless extended under Clause 35.7.2, which warranty shall be provided in accordance with the Service Level Agreement, when applicable.
Any defective part repaired or replaced during the Warranty Period shall itself be subjected to a further Warranty Period of one (01) year.
- 36.3 The Contractor shall perform any repair required to restore Goods/Equipment and/or Services/Works to the requirements of the Contract or such other performance levels agreed upon by SLT, if Goods/Equipment and/or Services/Works shall fail to meet such requirements at any time during the Warranty Period or has developed a pattern of failure or pattern of degradation that is likely to cause Goods/Equipment and/or Services/Works to fail to meet such requirements.
However, if the Contractor does not take a corrective intervention, SLT may elect to make repairs or such other measures as may be required which are covered by the Warranty. Any Goods/Equipment and/or Services/Works discovered to be defective or faulty during a Warranty Period shall be returned to the Contractor at his request and at his expense.
The Contractor shall bear the total cost of each such repair or improvement required during the Warranty Period, of which cost shall include but not be limited to, the cost of the components, equipment or materials requiring replacement, the cost of any additional equipment necessary to effect the repair, the cost of making the repair, the cost of labour and engineering assistance or development required to make the repair and all associated costs, such as, but not limited to, shipping and customs and services that may be required to make the repair .
- 36.4 If defects are found during the Warranty Period on repeated occasions in any part or parts of Goods/Equipment and/or Services/Works or if a pattern of failure or pattern of degradation is likely to cause any part or parts to fail to meet the specified requirements over the fifteen (15) years design life, such a part or parts shall not be repaired but shall be replaced by new part(s) at the request of SLT.
- 36.5 In addition, the Contractor shall pay to SLT all the expenses (if any) incurred by SLT in testing or examining any part of the Goods/Equipment and/or Services/Works for the purpose or in or about or in connection with this Clause 36 hereof or in connection with the making of Goods/Equipment and/or Services/Works, replacing or repairing any part of Goods/Equipment and/or Services/Works.
- 36.6 The Contractor shall make every reasonable effort to minimize the period of time that Goods/Equipment and/or Services/Works are out of service for repair and testing. For failures or any situations which cause or leads to an outage of Goods/Equipment and/or Services/Works, the Contractor undertakes to initiate a corrective intervention

immediately but in any case no later than two (2) days after receiving a facsimile or a telex message from SLT.

- 36.7 The Contractor shall effect all repairs of Goods/Equipment and/or Services/Works through the use of repair materials supplied by him. However, the Contractor may use, with the agreement of SLT, the materials needed to effect a repair from SLT's available spare materials, components or equipment. The Contractor shall replace, in kind, such material supplied from SLT's spare stock within three (3) months.
- 36.8 The repair or replacement of any faulty unit or equipment includes the delivery to SLT of a descriptive report of the fault found and when appropriate, of the repair carried out on such faulty unit or equipment.
The maximum period for repair of the units (including shipping and customs clearance), shall be two (02) calendar months from the date of receiving the unit.

37. Employment of SLT Labour

Contractor shall not employ SLT staff as his employees in any capacity under this Contract or any of its Addenda

38. Protection of Existing Telecommunications System

- 38.1 During the installation period, the Contractor shall pay special attention to the protection of the existing telecommunications system from damage or interference.
- 38.2 In case such damage or interference should occur, the Contractor shall immediately suspend his work and ask SLT for their instructions, upon receipt of which he shall restore services as soon as possible at his own cost.

39. Prevention of Damage

- 39.1 The Contractor shall, at his own expenses, take all pertinent steps to prevent damage to Goods/Equipment and/or Services/Works, and also to property of third parties or third party until the Completion of Contract.
- 39.2 The Contractor shall, whenever SLT considers it necessary for the prevention of accidents, take proper measures at his own cost, and notify SLT of the measures taken. The Contractor shall be solely responsible, should any accident occur.
- 39.3 The Contractor shall not enter for any purpose, buildings other than those concerning with the Project/Work, without obtaining the permission of the person in charge.

40. Damaged Equipment, Non-delivered Equipment, Wrongly Delivered Equipment and Short delivered Equipment

- 40.1 In the event of any item of the System(s) being damaged at any stage before commissioning of the System(s) consisting of Goods/Equipment and/or Services/Works

and if, in the opinion of SLT the said damaged items of the system is to be replaced by new ones, then Contractor shall upon receipt of notification from SLT, effect replacement with immediate effect.

40.2 SLT shall not be liable for any damage or deterioration caused or occurring to the wrongly supplied items of the System(s) while in the custody of SLT.

40.3 Any item of the system wrongly supplied under the Contract, will be rejected at the option of SLT. The Contractor shall, upon receipt of SLT's notification, effect replacement within the time stipulated by SLT at his own cost. In addition, the Contractor shall :-

- (i) Be liable for all damages arising including liquidated damages for late delivery of such items of the System as is required by SLT in accordance with terms and conditions hereof.
- (ii) Collect the wrongly supplied items within one month from the date of written notification failing which, SLT reserves the right to charge the Contractor all expenses incurred including storage fee of any such wrongly delivered item until collection by the Contractor.

41. Transfer of Title

41.1 Goods/Equipment and/or Services/Works, whether installed or not in each project under each Addenda shall immediately, in consideration of payment of the first installment of the Contract Price, to the Contractor by SLT, as stipulated in the relevant Addendum to this Contract, become and remain the property of the SLT provided always that the Contractor shall have a particular possessory line on Goods to the extent the value thereof exceeds the total value of the installment payment made by SLT to the Contractor.

41.2 Notwithstanding that title in whole or in part of Goods/Equipment and/or Services/Works may have passed to the SLT pursuant to Clause 41.1 the Contractor shall remain and be responsible to SLT to make good any loss or damage to such Goods/Equipment and/or Services/Works arising from any case whatsoever during the period from the coming into force of the Contract until the issuance of the Certificate of Provisional Acceptance of Goods/Equipment and/or Services/Works in each project in accordance with Clause 35.5.

42. Monthly Progress Report

42.1 The Contractor shall submit a Monthly Progress Report in required number of copies in soft format to SLT within the first five (05) days of the month following the month under report.

42.2 Monthly Progress Report shall cover the following items:

- (a) Total progress during the month under report, including the Services/ Works not verified by SLT.
- (b) Total progress of the Services/Works completed by the Contractor in each Work area and each sub-system, and measured and verified by SLT during the month under report
- (c) Quantities reconciliation for the Materials imported, utilized and balance remaining against the Bills of Quantities in the Contract.
- (d) Contractor's manpower mobilization for the month under report
- (e) Major problems encountered
- (f) Anticipated work for the following three (3) months
- (g) Financial Report giving invoices submitted, amount paid by SLT on each sub-project basis.
- (h) Any pertinent information which SLT may request.

The format of the Monthly Progress Reports shall be subject to SLT's approval.

- 42.3 Contractor should submit a detail cost analysis according to a format given by SLT, for each component of work for which a PAC is issued. This information is required for capitalization of this Project/Work.

43. Damage to Third Party Property

- 43.1 The Contractor shall be solely responsible for all damage to property resulting from any act, omission, negligence, or misconduct in the Contractor's manner or method of performance or non performance of work under this contract and/or its addenda, or from defective Goods/Equipment/Services/ Works or materials, or acts of his employees. The Contractor shall not be released from such responsibility until the Completion of Contract which is to be completed finally during the tenor of this Contract. In the case of any such damage, the Contractor shall restore the damaged property at his own expense and to a condition equal to or similar to that which existed before such damage occurred. The Contractor shall be responsible for any injury to a third party, including death, and for any dispute with a third party arising from the Contractor's negligence or misconduct.
- 43.2 The Contractor shall indemnify SLT against all losses and claims for such injuries, deaths or damages, and against all claims, demands, proceedings, damages, costs, charges and expenses in respect of or in relation thereto.
- 43.3 The Contractor shall obtain an insurance cover in favour of SLT to comply with provisions made under the clauses 43.1 and 43.2 above.

44. Non Exclusivity

SLT shall have the right to obtain similar services from any third party contractor as and when SLT so desires.

45. Indemnity

The Contractor shall indemnify and hold harmless SLT against any claim, action, demand, expense, loss or other liabilities whatsoever which may arise as a result of inter alia the

Contractor's negligence and/or omission and/or failure to fulfill the Customer's obligations under this Agreement, including but not limited to the infringement or alleged infringement by the Contractor of any intellectual property rights and claims by any third party arising out of the Contract and the violation of any applicable laws and regulations by the Contractor.

46. Survival

The provisions of Clauses 2, 3, 5, 12, 18, 26.1.2, 27, 45, 50 and 51 shall survive any termination or cancellation of the Service and/or this Contract and the Contractor shall continue to observe its obligations set forth in Clauses 2, 3, 5, 12, 18, 26.1.2, 27, 45, 50 and 51 regardless of whether the Contractor ceases to be a party hereto.

47. Breach

In the event of any breach by the Contractor amounting to;

- i) failure to deliver any or all of the Goods/Equipment in the required quantity and quality as per the requirement of this Contract and/or Addendums.
- ii) failure to deliver any or all of the Goods/Equipment within the time period(s) specified in clause 11 of the Contract, or any extension thereof granted by SLT
- iii) failure to perform any other obligation(s) under the Contract and/or Addendums or any extension thereof granted by SLT

such breach shall render the Contractor liable to any or all of the following sanctions: forfeiture of its performance security and/or imposition of liquidated damages and/or deduction from the Contract Price any amount and/or recover any amount already paid to the Contractor and/or termination of the Contract in whole or in parts for default.

48 Non-Solicitation

The parties understand that each of their employees and consultants are a valuable asset. As such parties agree that during the fifteen (15) year design life of this Contract or for a period of 12 months after termination or expiry of this Contract whichever is longer, no party shall solicit for employment, either directly or indirectly, any person whose role has been significant in performance of this Contract.

49 Counterpart signing and Digital Signature

- 49.1 This Contract may be executed in duplicate but shall not be deemed to be effective until and unless executed by all the parties. When so executed by each party, the counterparts

together shall be deemed an original and shall constitute one and the same instrument to be valid and effective from the date hereof. All counterparts so executed shall constitute one agreement binding upon both parties, notwithstanding that both parties are not signatories to the original or the same counterpart.

- 49.2 Any electronic/digital signature/s (placed on a data message, electronic document, electronic record or any communication and any documents executed, scanned and transmitted electronically) shall be deemed as an original signature/s for the purposes of this Contract and shall have the same legal recognition, effect, validity or enforceability as the original form. The signatory/signatories hereto are fully aware of the content hereof and is/are duly authorized to sign or place their electronic/digital signature/s on behalf of each party hereto and bind such party to the transaction hereunder.

50. Anti-bribery and Anti corruption

- 50.1 The Contractor directly or indirectly shall have not and will not offer or give or agree to give, pay, offer, promise, authorize to give, to (i) any director, employee or representative of SLT or (ii) any public officer, a scheduled institution or public international organization under the Anti-Corruption Act of 09 of 2023 (iii) any employee or agent of any government, (iv) any employee or agent of a government-owned or government-controlled business, (v) any political party, political party official or candidate for political office, and (vi) any employee or agent of a (vi) any party connected to the Contract (collectively 'Person') any payment, anything of value, gift, bribe, any trade commission, rebate, gratification, financial or non-financial advantage, right or consideration of any kind as an inducement or reward for doing, influencing or carrying out any act in relation to the Contract for the purpose of influencing any act or decision of such Person, for showing any favor or disfavor to any Person or Persons in relation to the Contract or any commission or omission resulting in bribery and/or corruption. Any such act by the Contractor (or any third party acting on their behalf) amount to a breach of this Contract. The Contractor shall cause any third party acting on their behalf to comply with these provisions.
- 50.2 The Contractor shall on SLT's demand indemnify and hold harmless SLT including its directors and employees, against any and all claims, losses, damages, or expenses arising out of or related to any breach of this obligations.
- 50.3 The Contractor shall comply with all applicable laws and regulations in Sri Lanka including but not limited to Anti-Corruption Act of 09 of 2023 , Companies Act No.07 of 2007, and Prevention of Money Laundering Act as amended by Act No.40 of 2011 of Sri Lanka, Financial Transaction Reporting Act No.06 of 2006 and guidelines to be read with the same, pertaining to Corporate management and good governance, to avoid Fraud, Bribery and Corruption.

51. Privacy and Personal Data Protection

- 51.1 During the Contact period, Contractor may come into possession of personal data and sensitive personal information of personnel associated with SLT such as its customers, subscribers, employees, suppliers, consultants (Personal Data). In such case, the Contractor shall at all times safeguard and ensure that, the Personal Data which may be exposed, divulged, shared or which may be privy to the Contractor while providing the services to SLT whether as a controller, processor or in any other capacity,
- (i) be processed strictly in compliance with the provisions of the Personal Data Protection Act No.09 of 2022 and
 - (ii) be used reasonably and only for the purpose such Personal Data is shared by SLT and not for any other reason or purpose whatsoever.
- 51.2 Contractor shall take appropriate technical and organizational security measures to protect such Personal Data and to comply with data protection laws. Without limiting to the foregoing, in any case, the Contractor, shall in respect of all Personal Data, whether in its original or any derivative form :
- (a) take reasonable steps to keep such Personal Data secure and prevent the unauthorized use, access, loss or destruction to such data ;
 - (b) not store them for longer than as necessary to perform the services for SLT ;
 - (c) comply with reasonable instructions of SLT with regard to Contractor's and its subcontractor's access or use of such Personal Data;
 - (d) return to SLT or irretrievably destroy all copies of such Personal Data and/or any personal information of SLT where so requested by SLT or its Customers with a written confirmation to SLT after the expiration/termination of Contract.
- 51.3 The Contractor shall comply with 'Data Protection and Privacy obligations for Contractors' located at SLT website (www.slt.lk) or at such other location as SLT may determine from time to time, which shall be construed as part and parcel hereof.

52. Responsibilities of SLT

SLT will give reasonable assistance to this Contract for the following:

- (a) To assist to resolve unforeseen obstructions encountered by the Contractor during the execution of the Project/Work. (to the extent it is possible under the existing legal and regulatory framework)
- (b) To provide the Contractor with assistance for the carrying out of the formalities such as site survey etc, and assist the Contractor in negotiations with other Government authorities, private enterprises and dwellers in and about work sites during the execution of the works.

53. Responsibilities of Contractor

The Contractor shall comply with all the requirements given in General Conditions and Technical Specifications in this Contract, all other documents morefully stated under Clause 1.1.2 and the conditions under its addenda and execute the contract to the satisfaction of SLT in accordance with the Implementation Schedule.

OSP Unit Rate

ADDENDUM FOR PROVISION OF NEW DATA CONNECTIONS**(Ref: PM/Proj. No/NC/Serial No./Year)****LOI Ref:****SLT Ref:.....**

This Addendum bearing No. **PM/Proj. No/NC/Serial No./Year** (hereinafter referred to as Addendum) to the Principal Agreement No. dated is made at, Colombo on this day of, 2013.

BY AND BETWEEN

Sri Lanka Telecom PLC, bearing registration number PQ7, a Company duly incorporated under the Conversion of Public Corporations and Government Owned Business Undertakings into Public Companies Act No. 23 of 1987 and by order published in the Gazette (Extraordinary) of the Democratic Socialist Republic of Sri Lanka No. 942/7 dated 25th September, 1996 and registered under the Companies Act No.07 of 2007 and hereinafter called and referred to as “SLT” which term or expression shall where the context so admits or requires, mean and include the said Sri Lanka Telecom PLC its successors and permitted assigns of the one part.

AND

<Unit Rate Contractor> bearing registration No....., a company duly incorporated under the laws of Sri Lanka and having its Head Office at **<Contractor’s Office Address>**. (hereinafter sometimes called and referred to as “Contractor” which term or expression shall, where the context so requires or admits, mean and include the said, **<Unit Rate Contractor>**, its successors and permitted assigns) of the second part

WHREAS;

- A. SLT and Contractor have entered into a contract **<Contract No.>** dated (hereinafter referred to as the Principal Contract) for the purchase of goods and services for the Network Development work of Out Side Plant Net works of SLT based on the unit rates given in the **Annex A** to the Principal Contract.

OSP Unit Rate

- B. Now SLT is desirous of procuring Contractor's Goods and Services for the provision of New Data Connections on the same terms and conditions and at the unit rates as per the **Annex A** of the Principal Contract, to which the Contractor has agreed.
- C. Contractor, after having studied the conditions under which the said New Data Connections are to be provided and the other factors that may have a bearing on the said Network Development work of Out Side Plant Networks including regulatory and legal aspects, has represented to SLT that it has the capacity, expertise and resources to provide the desired New Data Connections within the time schedules and unit rates set by SLT.
- D. The parties are desirous of stating a supplement/addition to the aforesaid Principal Contract in writing.

NOW THE PARTIES HERETO AGREE AS FOLLOWS:

1. Scope of work

The scope of this Addendum No <Addendum No.> (hereinafter sometimes referred to as the "Scope") is to execute <Description of Work> in <RTOM Area> under the approved Unit Rates given in the **Annex A** to the Principal Contract.

2. Value of the Addendum

2.1 The Total Estimated Value of this Addendum is Rs <Job Value> + Taxes.

2.2 The aforesaid value of the Addendum is based on the unit rates in Annex A of the Principal Contract. However SLT reserves the right to allocate work based on the unit rates of any of the category I, II and III of the aforesaid Annex A. In the event the selected category is changed resulting in reduction of the value of the Addendum then the Contractor shall have no legitimate expectation to the difference between the value of the Addendum and the calculated value of the Addendum as per the subsequently selected categories.

3. Period

3.1 The period of this Addendum (hereinafter sometimes referred to as the "Period") shall commence from the date of signing of this Addendum and/or the submission of the Performance Security by the contractor as per the clause No. 4 below, which ever comes later and shall stand terminated on issuance of the Final Acceptance Certificate, unless extended by mutual agreement.

- 3.2 The parties further agree that the coming into force of the addendum and the period of completion of the work scope herein shall be further governed by the clause No 34 and 16 respectively of the principal contract.

4. Performance Security

- 4.1 Within fourteen (14) calendar days after receiving the Letter of Intent the contractor shall furnish a performance security for ten per cent (10%) of the total value of this Addendum amounting to Sri Lankan Rupees(SL Rs.....) in a form acceptable to SLT from a bank operating in Sri Lanka acceptable to SLT.
- 4.2 The proceeds of the performance security shall be payable to SLT on the contractors failure to complete its obligations under the contract. The contractor shall cause the validity period of the performance bond to be extended for such period(s) if the period is extended.
- 4.3 The performance security shall be denominated in the currencies of the Contract and shall be in the form of an irrevocable and unconditional bank guarantee, issued by a bank located in Sri Lanka acceptable to SLT. The said bank guarantee shall remain in force until the issuance of the Final Acceptance Certificate or 12 months after the issuance of the Provisional acceptance Certificate, whichever comes later.
- 4.4 Performance security will be discharged or returned by SLT not later than thirty (30) calendar days following the date of Final Acceptance Certificate or 12 months after the issuance of the Provisional Acceptance Certificate.
- 4.5 However in the event the value of this Addendum is less than One Million (excluding taxes) the Contractor shall not be required to furnish a performance security as mentioned above.

5. Terms of Payment

The method and conditions of payment for the contractor under this Addendum shall also be in accordance with clause no. 17.1 of the Principal Contract.

6. Work Procedure

- 6.1 Contractor shall complete the work of each Service Order, within the following time frame, according to the following conditions.
- (i) If pole erection is not involved work should be completed within two working days.
 - (ii) If pole erection is involved work should be completed within five working days.

The number of days shall be counted from the date receipt of the particular service order.

6.2 Contractor shall use the material specified in the „Technical Specifications and installation Standards“ attached as annexure to this document.

7. Delays in Contractors Performance

7.1 Failure to comply with the time limit given in, the Contractor shall pay to SLT, a penalty of Rs.500/- per connection per each week in each instance of such delay. Contractor may appeal to SLT to waive this penalty in cases where the delay is solely due to SLT's default. In such situations the decision of CEO of SLT shall be final and binding on the parties.

7.2 If at any time during performance of the Contract, the Contractor encounters conditions impeding the timely execution of the service orders, the Contractor shall promptly notify SLT and return the particular service order. SLT shall take appropriate action to clear the obstruction and SLT may hand over the service order again to the contractor and the number of days will be counted there onwards.

7.3 In case where SLT issue service order significantly exceeding the normally agreed rates of the Contractor, SLT will grant a reasonable extension of the period to complete such service orders.

7.4 SLT may request any service order to be completed on priority or decide on service levels for which compensation considered depend on the lead time for service.

8 Acceptance

8.1 General

The material and work shall be accepted on service order basis in accordance with Technical Specifications after submitting such works to a Provisional Acceptance Test and a Final Acceptance Test designed by SLT.

8.2 Provisional Acceptance

After completion of the data line installation work the Contractor shall inform SLT that the line is ready for Provisional Acceptance Testing. Also the Contractor shall submit a completed Quality Check Sheet (NC-MON-QUA) one sheet for each line completed.

- a. SLT shall issue a "Test Number" if SLT satisfied with the Provisional Acceptance Test results or

OSP Unit Rate

- b. SLT shall notify the Contractor with reasons that SLT will not issue a Test Number if SLT is not satisfied with the Provisional Acceptance Test results.
- c. Contractor shall rectify the defects and re-submit for Provisional Acceptance.
- d. Contractor shall not invoice line construction work for payment without having a Test Number.
- e. If any defects found in the cause of checking the invoiced connections SLT shall notify the contractor.
- f. Invoices shall not be cleared for payment until all such defects were rectified up to the satisfaction of SLT.

8.3 Date Service Provided (DSP)

The date SLT issue the „test number“ is considered to be the “Date Service Provided”.

8.4 Final Acceptance

Not later than thirty (30) calendar days after expiration of the Warranty Period and after the satisfactory completion of any defects reported and conveyed to the contractor has been fulfilled, SLT shall issue a Final Acceptance Certificate for the work carried out.

9. Other Terms

- a. This Addendum shall come into force on the date the authorized representatives of both parties sets their respective hands to this Addendum
- b. The provisions of the Principal Contract that has not been amended in terms hereof shall continue to bind the parties.
- c. This Addendum shall be read together with Principal Contract, which sets forth the entire agreement between the parties pertaining to the supply, delivery, installation & testing goods and services and supersedes any and all earlier verbal or written agreements.

IN WITNESS WHEREOF the Signatures of and the and respectively of Sri Lanka Telecom PLC, the authorized signatories of Sri Lanka Telecom PLC were placed hereto and the signature of being the authorized signatory of the said <Name of the Contractor>, was placed hereto and to one other of the same date and tenor as these presents at the place and on the date hereinbefore mentioned.

OSP Unit Rate

The signatures of
and the authorized
signatories of Sri Lanka Telecom PLC
were placed hereto.

Witnesses;

1.....
Name.....

2.....
Name.....

The signature of
the authorized signatory of the said
<Name of Contractor>
was placed hereto on <Date>, in
Colombo.

.....
Signature of the Contractor

Witnesses;

1. _____
Name:

2. _____
Name:

OSP Unit Rate

ADDENDUM FOR DEVELOPMENT/ SHIFTING & RELOCATION

(Ref: PM/Proj. No/OF/OSP/Serial No./Year)

LOI Ref:

SLT Ref:.....

This Addendum bearing No.**PM/Proj. No/OF/OSP/Serial No./Year** (hereinafter referred to as Addendum) to the Principal Agreement No. dated is made at, Colombo on this day of, 2013.

BY AND BETWEEN

Sri Lanka Telecom PLC, bearing registration number PQ7, a Company duly incorporated under the Conversion of Public Corporations and Government Owned Business Undertakings into Public Companies Act No. 23 of 1987 and by order published in the Gazette (Extraordinary) of the Democratic Socialist Republic of Sri Lanka No. 942/7 dated 25th September, 1996 and registered under the Companies Act No.07 of 2007 and hereinafter called and referred to as “SLT” which term or expression shall where the context so admits or requires, mean and include the said Sri Lanka Telecom PLC its successors and permitted assigns of the one part.

AND

<Unit Rate Contractor> bearing registration No....., a company duly incorporated under the laws of Sri Lanka and having its registered office at **<Contractor’s Office Address>**. (hereinafter sometimes called and referred to as “Contractor” which term or expression shall, where the context so requires or admits, mean and include the said, **<Unit Rate Contractor>**, its successors and permitted assigns) of the second part

WHREAS;

- A. SLT and Contractor have entered into a contract **<Contract No.>** dated (hereinafter referred to as the Principal Contract) for the purchase of goods and services for Network Development work of Out Side Plant Net work of SLT based on the unit rates given in the **Annex A to** the Principal Contract.
- B. Now SLT is desirous of procuring Contractor’s Goods and Services to continue the Network Development work of Out Side Plant Net works on the same terms and

conditions and at the unit rates as per the **Annex A** of the Principal Contract, to which the Contractor has agreed.

- C. Contractor, after having studied the conditions under which the said Network Development, work of Out Side Plant Networks are to be provided and the other factors that may have a bearing on the said Network Development work of Out Side Plant Networks including regulatory and legal aspects, has represented to SLT that it has the capacity, expertise and resources to provide the desired Network Development work of Out Side Plant Networks within the time schedules and unit rates set by SLT.
- D. The parties are desirous of stating a supplement/addition to the aforesaid Principal Contract in writing.

NOW THE PARTIES HERETO AGREE AS FOLLOWS:

1. Scope of work

The scope of this Addendum No <**Addendum No.**> (hereinafter sometimes referred to as the “Scope”) is to execute <**Description of Work**> in <RTOM Area> under the approved Unit Rates given in the **Annex A** to the Principal Contract.

2. Value of the Addendum

- 2.1 The Total Estimated Value of this Addendum is Rs <**Job Value**> + **Taxes**.
- 2.2 The aforesaid value of the Addendum is based on the unit rates in Annex A of the Principal Contract. However SLT reserves the right to allocate work based on the unit rates of any of the category I, II and III of the aforesaid Annex A. In the event the selected category is changed resulting in reduction of the value of the Addendum then the Contractor shall have no legitimate expectation to the difference between the value of the Addendum and the calculated value of the Addendum as per the subsequently selected categories.

3. Period

- 3.1 The period of this Addendum (hereinafter sometimes referred to as the “Period”) shall commence from the date of signing of this Addendum and/or the submission of the Performance Security by the contractor as per the clause No. 4 below, whichever comes later and shall stand terminated on issuance of the Final Acceptance Certificate, unless extended by mutual agreement.

OSP Unit Rate

- 3.2 The parties further agree that the coming into force of the addendum and the period of completion of the work scope herein shall be further governed by the clause No 34 and 16 respectively of the principal contract.
- 3.3 Period of completion.

This work shall be completed

4. Performance Security

- 4.1 Within fourteen (14) calendar days after receiving the Letter of Intent the contractor shall furnish performance security for ten per cent (10%) of the total value of this Addendum amounting to Sri Lankan Rupees(SL Rs.....) in a form acceptable to SLT from a bank operating in Sri Lanka acceptable to SLT.
- 4.2 The proceeds of the performance security shall be payable to SLT on the contractors failure to complete its obligations under the contract. The contractor shall cause the validity period of the performance bond to be extended for such period(s) if the period is extended.
- 4.3 The performance security shall be denominated in the currencies of the Contract and shall be in the form of an irrevocable and unconditional bank guarantee, issued by a bank located in Sri Lanka acceptable to SLT. The said bank guarantee shall remain in force until the issuance of the Final Acceptance Certificate.
- 4.4 Performance security will be discharged or returned by SLT not later than thirty (30) calendar days following the date of Final Acceptance Certificate.
- 4.5 However in the event the value of this Addendum is less than One Million (excluding taxes) the Contractor shall not be required to furnish a performance security as mentioned above.

5. Payment

- 5.1 The method and conditions of payment to be made to the contractor under this Addendum is morefully stated under clause no. 17 of the Principal Contract.
- 5.2 SLT shall not issue Partial/conditional PAC for each completed work based on the invoices. One PAC shall be issued on successful completion of PAT for the entire scope of work under this Addendum.
- 5.3 In the event the originally proposed contract value is reduced due to a change in the selected category, the payments will still be made on the above installment basis. However upon an invoice reaching the maximum payment that could be made on the above installment basis, that would be the final work allocated to the Contractor under this Addendum and the difference between the subsequently calculated value of the

Addendum and the already settled payments shall be made as a miscellaneous payment under such last invoice

6. Acceptance

6.1 General

The material and work shall be accepted on service order basis in accordance with Technical Specifications after submitting such works to a Provisional Acceptance Test and a Final Acceptance Test designed by SLT.

6.2 Provisional Acceptance

6.2.1 When SLT is satisfied with the results of the Acceptance Tests that Goods and services have been completed in accordance with the Specifications and other requirements of the Contract, SLT shall issue a Provisional Acceptance Certificate and Goods/Equipment/services/works shall be deemed to be provisionally accepted and absolute and exclusive right, title and interest to Goods/Equipment/services/works shall vest in SLT on the deemed date of issue of the notice under Clause 35.4.1 of the Principal Contract or the actual Provisional Acceptance Date whichever occurs later.

6.2.2 The Provisional Acceptance Certificate may be qualified or may have annexed to it an agreed list of outstanding items and the time table for the remedy of such outstanding items. In such a case, and pursuant to the list of outstanding items, SLT is entitled to retain a part of payment due upon Provisional Acceptance.

6.2.3 In the event the Provisional Acceptance Certificate is not issued SLT shall have the right to either terminate the Contract or grant further time to the Contractor for Supply and Delivery of Goods/Equipment. In such an event the provisions of Clause 8 hereof and the provisions of clause 35 of the Principal Contract shall apply.

6.2.4 The Contractor shall remedy the deficiencies indicated in all such listed items, in accordance with the time table annexed to the Provisional Acceptance Certificate, so as to ensure full conformity with the requirements of the Contract and so long as any such items are outstanding, the Contractor shall continue to carry the risk in respect of such items and be responsible for its maintenance.

6.2.5 If SLT is not satisfied that the results of the Provisional Acceptance Tests justify the issuance of Provisional Acceptance Certificate but nevertheless wishes to put a part of or all the Goods/ Equipment into commercial service, SLT shall get the consent of the Contractor prior to putting the Goods/Equipment into commercial service.

6.3 Final Acceptance

631 Not later than thirty (30) calendar days from the expiration of the Warranty Period, provided that the Contractor has fulfilled his commitments under this Addendum SLT shall issue a Final Acceptance Certificate.

632 The above said one year shall be considered as the observation period and the completed projects are to be maintained by the Contractor. SLT shall not be responsible for the faults of the OSP network during the above said one year period.

OSP Unit Rate

633 The issuance of this certificate shall not be unreasonably withheld or delayed, but in the event that the a pattern of degradation develops that is likely to cause Goods/Equipment fail to meet the requirement of the Contract or such other performance levels agreed upon by SLT, Final Acceptance may be withheld until it can be demonstrated to the satisfaction of SLT that such failures would not continue. In such event, the Warranty Period shall be extended until the Final Acceptance Certificate is issued.

7. Other Terms

- d. This Addendum shall come into force on the date the authorized representatives of both parties sets their respective hands to this Addendum
- e. The provisions of the Principal Contract that has not been amended in terms hereof shall continue to bind the parties.
- f. This Addendum shall be read together with Principal Contract, which sets forth the entire agreement between the parties pertaining to the supply, delivery, installation & testing goods and services and supersedes any and all earlier verbal or written agreements.

IN WITNESS WHEREOF the Signatures of and the and respectively of Sri Lanka Telecom PLC, the authorized signatories of Sri Lanka Telecom PLC were placed hereto and the signature of being the authorized signatory of the said <Name of the Contractor>, was placed hereto and to one other of the same date and tenor as these presents at the place and on the date hereinbefore mentioned.

The signatures of and the authorized signatories of Sri Lanka Telecom PLC were placed hereto.

Witnesses;

OSP Unit Rate

1.....

2.....

Name.....

Name.....

The signature of
the authorized signatory of the said
<Name of Contractor>
was placed hereto on <Date>, in
Colombo.

.....
Signature of the Contractor

Witnesses;

1. _____

2. _____

Name:

Name:

OSP Unit Rate

ADDENDUM FOR THE PROVISION OF PEO TV NEW CONNECTIONS

(Ref: PM/Proj. No/NC/Serial No./Year)

LOI Ref:

SLT Ref:.....

This Addendum bearing No. **PM/Proj. No/NC/Serial No./Year** (hereinafter referred to as Addendum) to the Principal Agreement No. dated is made at, Colombo on this day of, 2013.

BY AND BETWEEN

Sri Lanka Telecom PLC, bearing registration number PQ7, a Company duly incorporated under the Conversion of Public Corporations and Government Owned Business Undertakings into Public Companies Act No. 23 of 1987 and by order published in the Gazette (Extraordinary) of the Democratic Socialist Republic of Sri Lanka No. 942/7 dated 25th September, 1996 and registered under the Companies Act No.07 of 2007 and hereinafter called and referred to as “SLT” which term or expression shall where the context so admits or requires, mean and include the said Sri Lanka Telecom PLC its successors and permitted assigns of the one part.

AND

<Unit Rate Contractor>bearing registration No....., a company duly incorporated under the laws of Sri Lanka and having its Head Office at **<Contractor’s Office Address>**. (hereinafter sometimes called and referred to as “Contractor” which term or expression shall, where the context so requires or admits, mean and include the said, **<Unit Rate Contractor>**, its successors and permitted assigns) of the second part

WHREAS;

- A. SLT and Contractor have entered into a contract **<Contract No.>** dated (hereinafter referred to as the Principal Contract) for the purchase of goods and services for the Network Development work of Out Side Plant Networks of SLT based on the unit rates given in the **Annex A** to the Principal Contract.

OSP Unit Rate

- B. Now SLT is desirous of procuring Contractor's Goods and Services for the provision of PEO TV New Connections on the same terms and conditions and at the unit rates as per the **Annex A** of the Principal Contract, to which the Contractor has agreed.
- C. Contractor, after having studied the conditions under which the said PEO TV New Connections are to be provided and the other factors that may have a bearing on the said Network Development work of Out Side Plant Networks including regulatory and legal aspects, has represented to SLT that it has the capacity, expertise and resources to provide the desired PEO TV New Connections within the time schedules and unit rates set by SLT.
- D. The parties are desirous of stating a supplement/addition to the aforesaid Principal Contract in writing.

NOW THE PARTIES HERETO AGREE AS FOLLOWS:

1. Scope of work

The scope of this Addendum No <**Addendum No.**> (hereinafter sometimes referred to as the "Scope") is to execute <**Description of Work**> in <RTOM Area> under the approved Unit Rates given in the **Annex A** to the Principal Contract.

2. Value of the Addendum

- 2.1 The Total Estimated Value of this Addendum is Rs <**Job Value**> + **Taxes**.
- 2.2 The aforesaid value of the Addendum is based on the unit rates in Annex A of the Principal Contract. However SLT reserves the right to allocate work based on the unit rates of any of the category I, II and III of the aforesaid Annex A. In the event the selected category is changed resulting in reduction of the value of the Addendum then the Contractor shall have no legitimate expectation to the difference between the value of the Addendum and the calculated value of the Addendum as per the subsequently selected categories.

03.Period

- 3.1 The period of this Addendum (hereinafter sometimes referred to as the "Period") shall commence from the date of signing of this Addendum and/or the submission of the Performance Security by the contractor as per the clause No. 4 below , which ever comes later and shall stand terminated on issuance of the Final Acceptance Certificate, unless extended by mutual agreement.

- 32 The parties further agree that the coming into force of the addendum and the period of completion of the work scope herein shall be further governed by the clause No 34 and 16 respectively of the principal contract.

4. Performance Security

- 4.1 Within fourteen (14) calendar days after receiving the Letter of Intent the contractor shall furnish a performance security for ten per cent (10%) of the total value of this Addendum amounting to Sri Lankan Rupees(SL Rs.....) in a form acceptable to SLT from a bank operating in Sri Lanka acceptable to SLT.
- 4.2 The proceeds of the performance security shall be payable to SLT on the contractors failure to complete its obligations under the contract. The contractor shall cause the validity period of the performance bond to be extended for such period(s) if the period is extended.
- 4.3 The performance security shall be denominated in the currencies of the Contract and shall be in the form of an irrevocable and unconditional bank guarantee, issued by a bank located in Sri Lanka acceptable to SLT. The said bank guarantee shall remain in force until the issuance of the Final Acceptance Certificate or 12 months after the issuance of the Provisional acceptance Certificate, whichever comes later.
- 4.4 Performance security will be discharged or returned by SLT not later than thirty (30) calendar days following the date of Final Acceptance Certificate or 12 months after the issuance of the Provisional Acceptance Certificate.
- 4.5 However in the event the value of this Addendum is less than One Million (excluding taxes) the Contractor shall not be required to furnish a performance security as mentioned above.

5. Terms of Payment

The method and conditions of payment for the contractor under this addendum shall also be in accordance with clause no. 17.1 of the Principal Contract.

6. Work Procedure

- 6.1 Contractor shall complete the work of each Service Order, within the following time frame, according to the following conditions.
- (i) If PEO TV connection is given to an existing line, work should be completed within two working days.
 - (ii) If PEO TV connection is provided without pole erection, work should be completed within two working days.

OSP Unit Rate

- (iii) If PEO TV connection is provided with pole erection, work should be completed within five working days.

The number of days shall be counted from the date receipt of the particular service order.

- 62 Contractor shall use the material specified in the „Technical Specifications and installation Standards“ attached as annexure to this document.

7. Delays in Contractors Performance

- 7.1 Failure to comply with the time limit given in, the Contractor shall pay to SLT, a penalty of Rs.500/- per connection per each week in each instance of such delay. Contractor may appeal to SLT to waive this penalty in cases where the delay is solely due to SLT's default. In such situations the decision of CEO of SLT shall be final and binding on the parties.
- 7.2 If at any time during performance of the Contract, the Contractor encounters conditions impeding the timely execution of the service orders, the Contractor shall promptly notify SLT and return the particular service order. SLT shall take appropriate action to clear the obstruction and SLT may hand over the service order again to the contractor and the number of days will be counted there onwards.
- 7.3 In case where SLT issue service order significantly exceeding the normally agreed rates of the Contractor, SLT will grant a reasonable extension of the period to complete such service orders.
- 7.4 SLT may request any service order to be completed on priority or decide on service levels for which compensation considered depend on the lead time for service.

8 Acceptance

8.1 General

The material and work shall be accepted on service order basis in accordance with Technical Specifications after submitting such works to a Provisional Acceptance Test and a Final Acceptance Test designed by SLT.

8.2 Provisional Acceptance

After completion of the PEO TV installation work the Contractor shall inform SLT that the line is ready for Provisional Acceptance Testing. Also the Contractor shall submit a completed Quality Check Sheet (NC-MON-QUA) one sheet for each line completed.

OSP Unit Rate

- g. SLT shall issue a “Test Number” if SLT satisfied with the Provisional Acceptance Test results or
- h. SLT shall notify the Contractor with reasons that SLT will not issue a Test Number if SLT is not satisfied with the Provisional Acceptance Test results.
- i. Contractor shall rectify the defects and re-submit for Provisional Acceptance.
- j. Contractor shall not invoice line construction work for payment without having a Test Number.
- k. If any defects found in the cause of checking the invoiced connections SLT shall notify the contractor.
- l. Invoices shall not be cleared for payment until all such defects were rectified up to the satisfaction of SLT.

8.3 Date Service Provided (DSP)

The date SLT issue the „test number“ is considered to be the “Date Service Provided”.

8.4 Final Acceptance

Not later than thirty (30) calendar days after expiration of the Warranty Period and after the satisfactory completion of any defects reported and conveyed to the contractor has been fulfilled, SLT shall issue a Final Acceptance Certificate for the work carried out.

9. Other Terms

- a. This Addendum shall come into force on the date the authorized representatives of both parties sets their respective hands to this Addendum
- b. The provisions of the Principal Contract that has not been amended in terms hereof shall continue to bind the parties.
- c. This Addendum shall be read together with Principal Contract, which sets forth the entire agreement between the parties pertaining to the supply, delivery, installation & testing goods and services and supersedes any and all earlier verbal or written agreements.

IN WITNESS WHEREOF the Signatures of and the and respectively of Sri Lanka Telecom PLC, the authorized signatories of Sri Lanka Telecom PLC were placed hereto and the signature of

OSP Unit Rate

....., being the authorized signatory of the said <Name of the Contractor>, was placed hereto and to one other of the same date and tenor as these presents at the place and on the date hereinbefore mentioned.

The signatures of
and the authorized
signatories of Sri Lanka Telecom PLC
were placed hereto.

Witnesses;

1.....	2.....
Name.....	Name.....

The signature of the authorized signatory of the said <Name of Contractor> was placed hereto on <Date>, in Colombo.	 Signature of the Contractor
---	--------------------------------------

Witnesses;

1. _____	2. _____
Name:	Name:

OSP Unit Rate

ADDENDUM FOR RECONNECTIONS**(Ref: PM/Proj. No/NC/Serial No./Year)****LOI Ref:****SLT Ref:.....**

This Addendum bearing No. **PM/Proj. No/NC/Serial No./Year** (hereinafter referred to as Addendum) to the Principal Agreement No. dated is made at, Colombo on this day of, 2013.

BY AND BETWEEN

Sri Lanka Telecom PLC, bearing registration number PQ7, a Company duly incorporated under the Conversion of Public Corporations and Government Owned Business Undertakings into Public Companies Act No. 23 of 1987 and by order published in the Gazette (Extraordinary) of the Democratic Socialist Republic of Sri Lanka No. 942/7 dated 25th September, 1996 and registered under the Companies Act No.07 of 2007 and hereinafter called and referred to as “SLT” which term or expression shall where the context so admits or requires, mean and include the said Sri Lanka Telecom PLC its successors and permitted assigns of the one part.

AND

<Unit Rate Contractor> bearing registration No....., a company duly incorporated under the laws of Sri Lanka and having its Head Office at **<Contractor’s Office Address>**. (hereinafter sometimes called and referred to as “Contractor” which term or expression shall, where the context so requires or admits, mean and include the said, **<Unit Rate Contractor>**, its successors and permitted assigns) of the second part

WHREAS;

- A. SLT and Contractor have entered into a contract **<Contract No.>** dated (hereinafter referred to as the Principal Contract) for the purchase of goods and services for the Network Development work of Out Side Plant Networks of SLT based on the unit rates given in the **Annex A** to the Principal Contract.

OSP Unit Rate

- B. Now SLT is desirous of procuring Contractor's Goods and Services for the provision of Reconnection services on the same terms and conditions and at the unit rates as per the **Annex A** of the Principal Contract, to which the Contractor has agreed.
- C. Contractor, after having studied the conditions under which the said Reconnection services are to be provided and the other factors that may have a bearing on the said Network Development work of Out Side Plant Networks including regulatory and legal aspects, has represented to SLT that it has the capacity, expertise and resources to provide the desired Reconnection services within the time schedules and unit rates set by SLT.
- D. The parties are desirous of stating a supplement/addition to the aforesaid Principal Contract in writing.

NOW THE PARTIES HERETO AGREE AS FOLLOWS:

1. Scope of work

The scope of this Addendum No <**Addendum No.**> (hereinafter sometimes referred to as the "Scope") is to execute <**Description of Work**> in <RTOM Area> under the approved Unit Rates given in the **Annex A** to the Principal Contract.

2. Value of the Addendum

- 2.1 The Total Estimated Value of this Addendum is Rs <**Job Value**> + **Taxes**.
- 2.2 The aforesaid value of the Addendum is based on the unit rates in Annex A of the Principal Contract. However SLT reserves the right to allocate work based on the unit rates of any of the category I, II and III of the aforesaid Annex A. In the event the selected category is changed resulting in reduction of the value of the Addendum then the Contractor shall have no legitimate expectation to the difference between the value of the Addendum and the calculated value of the Addendum as per the subsequently selected categories.

03.Period

- 3.1 The period of this Addendum (hereinafter sometimes referred to as the "Period") shall commence from the date of signing of this Addendum and/or the submission of the Performance Security by the contractor as per the clause No. 4

below, whichever comes later and shall stand terminated on issuance of the Final Acceptance Certificate, unless extended by mutual agreement.

- 32 The parties further agree that the coming into force of the addendum and the period of completion of the work scope herein shall be further governed by the clause No 34 and 16 respectively of the principal contract.

4. Performance Security

- 4.1 Within fourteen (14) calendar days after receiving the Letter of Intent the contractor shall furnish a performance security for ten per cent (10%) of the total value of this Addendum amounting to Sri Lankan Rupees(SL Rs.....) in a form acceptable to SLT from a bank operating in Sri Lanka acceptable to SLT.
- 4.2 The proceeds of the performance security shall be payable to SLT on the contractors failure to complete its obligations under the contract. The contractor shall cause the validity period of the performance bond to be extended for such period(s) if the period is extended.
- 4.3 The performance security shall be denominated in the currencies of the Contract and shall be in the form of an irrevocable and unconditional bank guarantee, issued by a bank located in Sri Lanka acceptable to SLT. The said bank guarantee shall remain in force until the issuance of the Final Acceptance Certificate or 12 months after the issuance of the Provisional acceptance Certificate, whichever comes later.
- 4.4 Performance security will be discharged or returned by SLT not later than thirty (30) calendar days following the date of Final Acceptance Certificate or 12 months after the issuance of the Provisional Acceptance Certificate.

5. Terms of Payment

The method and conditions of payment for the contractor under this addendum shall also be in accordance with clause no. 17.1 of the Principal Contract.

6. Work Procedure

- 6.1 Contractor shall complete the work of each Service Order, within the following time frame, according to the following conditions.
- (i) If pole erection is not involved work should be completed within two working days.
 - (ii) If pole erection is involved work should be completed within five working days.

The number of days shall be counted from the date receipt of the particular service order.

- 62 Contractor shall use the material specified in the „Technical Specifications and installation Standards“ attached as annexure to this document.

7. Delays in Contractors Performance

- 7.1 Failure to comply with the time limit given in, the Contractor shall pay to SLT, a penalty of Rs.500/- per connection per each week in each instance of such delay. Contractor may appeal to SLT to waive this penalty in cases where the delay is solely due to SLT's default. In such situations the decision of CEO of SLT shall be final and binding on the parties.
- 7.2 If at any time during performance of the Contract, the Contractor encounters conditions impeding the timely execution of the service orders, the Contractor shall promptly notify SLT and return the particular service order. SLT shall take appropriate action to clear the obstruction and SLT may hand over the service order again to the contractor and the number of days will be counted there onwards.
- 7.3 In case where SLT issue service order significantly exceeding the normally agreed rates of the Contractor, SLT will grant a reasonable extension of the period to complete such service orders.
- 7.4 SLT may request any service order to be completed on priority or decide on service levels for which compensation considered depend on the lead time for service.

8 Acceptance

8.1 General

The material and work shall be accepted on service order basis in accordance with Technical Specifications after submitting such works to a Provisional Acceptance Test and a Final Acceptance Test designed by SLT.

8.2 Provisional Acceptance

After completion of the telephone line installation work the Contractor shall inform SLT that the line is ready for Provisional Acceptance Testing. Also the Contractor shall submit a completed Quality Check Sheet (NC-MON-QUA) one sheet for each line completed.

- a. SLT shall issue a "Test Number" if SLT satisfied with the Provisional Acceptance Test results or

OSP Unit Rate

- b. SLT shall notify the Contractor with reasons that SLT will not issue a Test Number if SLT is not satisfied with the Provisional Acceptance Test results.
- c. Contractor shall rectify the defects and re-submit for Provisional Acceptance.
- d. Contractor shall not invoice line construction work for payment without having a Test Number.
- e. If any defects found in the cause of checking the invoiced connections SLT shall notify the contractor.
- f. Invoices shall not be cleared for payment until all such defects were rectified up to the satisfaction of SLT.

8.3 Date Service Provided (DSP)

The date SLT issue the „test number“ is considered to be the “Date Service Provided”.

8.4 Final Acceptance

Not later than thirty (30) calendar days after expiration of the Warranty Period and after the satisfactory completion of any defects reported and conveyed to the contractor has been fulfilled, SLT shall issue a Final Acceptance Certificate for the work carried out.

9. Other Terms

- a. This Addendum shall come into force on the date the authorized representatives of both parties sets their respective hands to this Addendum.
- b. The provisions of the Principal Contract that has not been amended in terms hereof shall continue to bind the parties.
- c. This Addendum shall be read together with Principal Contract, which sets forth the entire agreement between the parties pertaining to the supply, delivery, installation & testing goods and services and supersedes any and all earlier verbal or written agreements.

IN WITNESS WHEREOF the Signatures of and the and respectively of Sri Lanka Telecom PLC, the authorized signatories of Sri Lanka Telecom PLC were placed hereto and the signature of being the authorized signatory of the said <Name of the Contractor>, was placed hereto and to one other of the same date and tenor as these presents at the place and on the date hereinbefore mentioned.

OSP Unit Rate

The signatures of
and the authorized
signatories of Sri Lanka Telecom PLC
were placed hereto.

Witnesses;

1.....	2.....
Name.....	Name.....

The signature of the authorized signatory of the said <Name of Contractor> was placed hereto on <Date>, in Colombo.	 Signature of the Contractor
--	--------------------------------------

Witnesses;

1. _____	2. _____
Name:	Name:

OSP Unit Rate

ADDENDUM FOR REHABILITATION

(Ref: PM/Proj. No/NC/Serial No./Year)

LOI Ref:

SLT Ref:.....

This Addendum bearing No. **PM/Proj. No/NC/Serial No./Year** (hereinafter referred to as Addendum) to the Principal Agreement No. dated is made at, Colombo on this day of, 2013.

BY AND BETWEEN

Sri Lanka Telecom PLC, bearing registration number PQ7, a Company duly incorporated under the Conversion of Public Corporations and Government Owned Business Undertakings into Public Companies Act No. 23 of 1987 and by order published in the Gazette (Extraordinary) of the Democratic Socialist Republic of Sri Lanka No. 942/7 dated 25th September, 1996 and registered under the Companies Act No.07 of 2007 and hereinafter called and referred to as “SLT” which term or expression shall where the context so admits or requires, mean and include the said Sri Lanka Telecom PLC its successors and permitted assigns of the one part.

AND

<Unit Rate Contractor> bearing registration No....., a company duly incorporated under the laws of Sri Lanka and having its Head Office at **<Contractor’s Office Address>**. (hereinafter sometimes called and referred to as “Contractor” which term or expression shall, where the context so requires or admits, mean and include the said, **<Unit Rate Contractor>**, its successors and permitted assigns) of the second part

WHREAS;

- A. SLT and Contractor have entered into a contract **<Contract No.>** dated (hereinafter referred to as the Principal Contract) for the purchase of goods and services for the Network Development work of Out Side Plant Net works of SLT based on the unit rates given in the **Annex A** to the Principal Contract.

- B. Now SLT is desirous of procuring Contractor's Goods and Services for the provision of New Connections on the same terms and conditions and at the unit rates as per the **Annex A** of the Principal Contract, to which the Contractor has agreed.
- C. Contractor, after having studied the conditions under which the said New Connections are to be provided and the other factors that may have a bearing on the said Network Development work of Out Side Plant Networks including regulatory and legal aspects, has represented to SLT that it has the capacity, expertise and resources to provide the desired New Connections within the time schedules and unit rates set by SLT.
- D. The parties are desirous of stating a supplement/addition to the aforesaid Principal Contract in writing.

NOW THE PARTIES HERETO AGREE AS FOLLOWS:

1. Scope of work

The scope of this Addendum No <**Addendum No.**> (hereinafter sometimes referred to as the "Scope") is to execute <**Description of Work**> in <RTOM Area> under the approved Unit Rates given in the **Annex A** to the Principal Contract.

2. Value of the Addendum

2.1 The Total Estimated Value of this Addendum is Rs <**Job Value**> + **Taxes**.

2.2 The aforesaid value of the Addendum is based on the unit rates in Annex A of the Principal Contract. However SLT reserves the right to allocate work based on the unit rates of any of the category I, II and III of the aforesaid Annex A. In the event the selected category is changed resulting in reduction of the value of the Addendum then the Contractor shall have no legitimate expectation to the difference between the value of the Addendum and the calculated value of the Addendum as per the subsequently selected categories.

3. Period

3.1 The period of this Addendum (hereinafter sometimes referred to as the "Period") shall commence from the date of signing of this Addendum and/or the submission of the Performance Security by the contractor as per the clause No. 4 below , which ever comes later and shall stand terminated on issuance of the Final Acceptance Certificate, unless extended by mutual agreement.

OSP Unit Rate

3.2 The parties further agree that the coming into force of the addendum and the period of completion of the work scope herein shall be further governed by the clause No 34 and 16 respectively of the principle contract.

3.3 Period of completion

.....

4. Performance Security

4.1 Within fourteen (14) calendar days after receiving the Letter of Intent the contractor shall furnish performance security for ten per cent (10%) of the total value of this Addendum amounting to Sri Lankan Rupees(SL Rs.....) in a form acceptable to SLT from a bank operating in Sri Lanka acceptable to SLT.

4.2 The proceeds of the performance security shall be payable to SLT on the contractors failure to complete its obligations under the contract. The contractor shall cause the validity period of the performance bond to be extended for such period(s) if the period is extended.

4.3 The performance security shall be denominated in the currencies of the Contract and shall be in the form of an irrevocable and unconditional bank guarantee, issued by a bank located in Sri Lanka acceptable to SLT. The said bank guarantee shall remain in force until the issuance of the Final Acceptance Certificate.

4.4 Performance security will be discharged or returned by SLT not later than thirty (30) calendar days following the date of the Final Acceptance Certificate.

4.5 However in the event the value of this Addendum is less than One Million (excluding taxes) the Contractor shall not be required to furnish a performance security as mentioned above.

5. Terms of Payment

The method and conditions of payment to be made for the contractor under this addendum is morefully stated under clause no. 17 of the Principal Contract.

6. Acceptance

6.1 General

The material and work shall be accepted on service order basis in accordance with Technical Specifications after submitting such works to a Provisional Acceptance Test and a Final Acceptance Test designed by SLT.

*OSP Unit Rate***6.2 Provisional Acceptance**

- 621 When SLT is satisfied with the results of the Acceptance Tests that Goods and services have been completed in accordance with the Specifications and other requirements of the Contract, SLT shall issue a Provisional Acceptance Certificate and Goods/Equipment/services/works shall be deemed to be provisionally accepted and absolute and exclusive right, title and interest to Goods/Equipment/services/works shall vest in SLT on the deemed date of issue of the notice under Clause 35.4.1 of the Principal Contract or the actual Provisional Acceptance Date whichever occurs later.
- 622 The Provisional Acceptance Certificate may be qualified or may have annexed to it an agreed list of outstanding items and the time table for the remedy of such outstanding items. In such a case, and pursuant to the list of outstanding items, SLT is entitled to retain a part of payment due upon Provisional Acceptance.
- 623 In the event the Provisional Acceptance Certificate is not issued SLT shall have the right to either terminate the Contract or grant further time to the Contractor for Supply and Delivery of Goods/Equipment. In such an event the provisions of Clause 8 hereof and the provisions of clause 35 of the Principal Contract shall apply.
- 624 The Contractor shall remedy the deficiencies indicated in all such listed items, in accordance with the time table annexed to the Provisional Acceptance Certificate, so as to ensure full conformity with the requirements of the Contract and so long as any such items are outstanding, the Contractor shall continue to carry the risk in respect of such items and be responsible for its maintenance.
- 625 If SLT is not satisfied that the results of the Provisional Acceptance Tests justify the issuance of Provisional Acceptance Certificate but nevertheless wishes to put a part of or all the Goods/ Equipment into commercial service, SLT shall get the consent of the Contractor prior to putting the Goods/Equipment into commercial service.

6.3 Final Acceptance

- 631 Not later than thirty (30) calendar days of the expiration of the warranty one year period , provided that the Contractor has fulfilled his commitments under this Addendum SLT shall issue a Final Acceptance Certificate.
- 632 The above said one year shall be considered as the observation period and the completed projects are to be maintained by the Contractor. SLT shall not be responsible for the faults of the OSP network during the above said one year period.
- 633 The issuance of this certificate shall not be unreasonably withheld or delayed, but in the event that the a pattern of degradation develops that is likely to cause Goods/Equipment fail to meet the requirement of the Contract or such other performance levels agreed upon by SLT, Final Acceptance may be withheld until it can be demonstrated to the satisfaction of SLT that such failures would not continue. In such event, the Warranty Period shall be extended until the Final Acceptance Certificate is issued.

7. Other Terms

- a. This Addendum shall come into force on the date the authorized representatives

OSP Unit Rate

of both parties sets their respective hands to this Addendum

OSP Unit Rate

- b. The provisions of the Principal Contract that has not been amended in terms hereof shall continue to bind the parties.
- c. This Addendum shall be read together with Principal Contract, which sets forth the entire agreement between the parties pertaining to the supply, delivery, installation & testing goods and services and supersedes any and all earlier verbal or written agreements.

IN WITNESS WHEREOF the Signatures of and the and respectively of Sri Lanka Telecom PLC, the authorized signatories of Sri Lanka Telecom PLC were placed hereto and the signature of being the authorized signatory of the said <Name of the Contractor>, was placed hereto and to one other of the same date and tenor as these presents at the place and on the date hereinbefore mentioned.

The signatures of and the authorized signatories of Sri Lanka Telecom PLC were placed hereto.

Witnesses;

1.....	2.....
Name.....	Name.....

The signature of the authorized signatory of the said <Name of Contractor> was placed hereto on <Date>, in Colombo.	 Signature of the Contractor
---	-----------------------------------

OSP Unit Rate

Witnesses;

1. _____

2. _____

Name:

Name:

OSP Unit Rate

ADDENDUM FOR REMOVALS

(Ref: PM/Proj. No/NC/Serial No./Year)

LOI Ref:

SLT Ref:.....

This Addendum bearing No. **PM/Proj. No/NC/Serial No./Year** (hereinafter referred to as Addendum) to the Principal Agreement No. dated is made at, Colombo on this day of, 2013.

BY AND BETWEEN

Sri Lanka Telecom PLC, bearing registration number PQ7, a Company duly incorporated under the Conversion of Public Corporations and Government Owned Business Undertakings into Public Companies Act No. 23 of 1987 and by order published in the Gazette (Extraordinary) of the Democratic Socialist Republic of Sri Lanka No. 942/7 dated 25th September, 1996 and registered under the Companies Act No.07 of 2007 and hereinafter called and referred to as “SLT” which term or expression shall where the context so admits or requires, mean and include the said Sri Lanka Telecom PLC its successors and permitted assigns of the one part.

AND

<Unit Rate Contractor> bearing registration No....., a company duly incorporated under the laws of Sri Lanka and having its Head Office at **<Contractor’s Office Address>**. (hereinafter sometimes called and referred to as “Contractor” which term or expression shall, where the context so requires or admits, mean and include the said, **<Unit Rate Contractor>**, its successors and permitted assigns) of the second part

WHREAS;

- A. SLT and Contractor have entered into a contract **<Contract No.>** dated (hereinafter referred to as the Principal Contract) for the purchase of goods and services for the Network Development work of Out Side Plant Net works of SLT based on the unit

OSP Unit Rate

rates given in the **Annex A** to the Principal Contract.

- B. Now SLT is desirous of procuring Contractor's Goods and Services for the provision of Removal services on the same terms and conditions and at the unit rates as per the **Annex A** of the Principal Contract, to which the Contractor has agreed.
- C. Contractor, after having studied the conditions under which the said Removal services are to be provided and the other factors that may have a bearing on the said Network Development work of Out Side Plant Networks including regulatory and legal aspects, has represented to SLT that it has the capacity, expertise and resources to provide the desired Removal services within the time schedules and unit rates set by SLT.
- D. The parties are desirous of stating a supplement/addition to the aforesaid Principal Contract in writing.

NOW THE PARTIES HERETO AGREE AS FOLLOWS:

1. Scope of work

The scope of this Addendum No <**Addendum No.**> (hereinafter sometimes referred to as the "Scope") is to execute <**Description of Work**> in <RTOM Area> under the approved Unit Rates given in the **Annex A** to the Principal Contract.

2. Value of the Addendum

- 2.1 The Total Estimated Value of this Addendum is Rs <**Job Value**> + **Taxes**.
- 2.2 The aforesaid value of the Addendum is based on the unit rates in Annex A of the Principal Contract. However SLT reserves the right to allocate work based on the unit rates of any of the category I, II and III of the aforesaid Annex A. In the event the selected category is changed resulting in reduction of the value of the Addendum then the Contractor shall have no legitimate expectation to the difference between the value of the Addendum and the calculated value of the Addendum as per the subsequently selected categories.

03.Period

- 3.1 The period of this Addendum (hereinafter sometimes referred to as the "Period") shall commence from the date of signing of this Addendum and/or the submission of the Performance Security by the contractor as per the clause No. 4

below , which ever comes later and shall stand terminated on issuance of the Final Acceptance Certificate, unless extended by mutual agreement.

- 32 The parties further agree that the coming into force of the addendum and the period of completion of the work scope herein shall be further governed by the clause No 34 and 16 respectively of the principal contract.

4. Performance Security

- 4.1 Within fourteen (14) calendar days after receiving the Letter of Intent the contractor shall furnish a performance security for ten per cent (10%) of the total value of this Addendum amounting to Sri Lankan Rupees(SL Rs.....) in a form acceptable to SLT from a bank operating in Sri Lanka acceptable to SLT.
- 4.2 The proceeds of the performance security shall be payable to SLT on the contractors failure to complete its obligations under the contract. The contractor shall cause the validity period of the performance bond to be extended for such period(s) if the period is extended.
- 4.3 The performance security shall be denominated in the currencies of the Contract and shall be in the form of an irrevocable and unconditional bank guarantee, issued by a bank located in Sri Lanka acceptable to SLT. The said bank guarantee shall remain in force until the issuance of the Final Acceptance Certificate or 12 months after the issuance of the Provisional acceptance Certificate, whichever comes later.
- 4.4 Performance security will be discharged or returned by SLT not later than thirty (30) calendar days following the date of Final Acceptance Certificate or 12 months after the issuance of the Provisional Acceptance Certificate.

5. Terms of Payment

The method and conditions of payment for the contractor under this addendum shall also be in accordance with clause no. 17.1 of the Principal Contract.

6. Work Procedure

- 6.1 Contractor shall complete the work of each Service Order, within the following time frame, according to the following conditions.
- (i) If pole erection is not involved work should be completed within two working days.
 - (ii) If pole erection is involved work should be completed within five working days.

The number of days shall be counted from the date receipt of the particular service order.

- 62 Contractor shall use the material specified in the „Technical Specifications and installation Standards“ attached as annexure to this document.

7. Delays in Contractors Performance

- 7.1 Failure to comply with the time limit given in, the Contractor shall pay to SLT, a penalty of Rs.500/- per connection per each week in each instance of such delay. Contractor may appeal to SLT to waive this penalty in cases where the delay is solely due to SLT's default. In such situations the decision of CEO of SLT shall be final and binding on the parties.
- 72 If at any time during performance of the Contract, the Contractor encounters conditions impeding the timely execution of the service orders, the Contractor shall promptly notify SLT and return the particular service order. SLT shall take appropriate action to clear the obstruction and SLT may hand over the service order again to the contractor and the number of days will be counted there onwards.
- 73 In case where SLT issue service order significantly exceeding the normally agreed rates of the Contractor, SLT will grant a reasonable extension of the period to complete such service orders.
- 74 SLT may request any service order to be completed on priority or decide on service levels for which compensation considered depend on the lead time for service.

8 Acceptance

8.1 General

The material and work shall be accepted on service order basis in accordance with Technical Specifications after submitting such works to a Provisional Acceptance Test and a Final Acceptance Test designed by SLT.

8.2 Provisional Acceptance

After completion of the removal, Contractor shall inform SLT that the line is ready for Provisional Acceptance Testing. Also the Contractor shall submit a completed Quality Check Sheet (NC-MON-QUA) one sheet for each line completed.

- a.SLT shall issue a "Test Number" if SLT satisfied with the Provisional Acceptance Test results or
- b.SLT shall notify the Contractor with reasons that SLT will not issue a Test Number if SLT is not satisfied with the Provisional Acceptance Test results.

OSP Unit Rate

- c. Contractor shall rectify the defects and re-submit for Provisional Acceptance.
- d. Contractor shall not invoice line construction work for payment without having a Test Number.
- e. If any defects found in the cause of checking the invoiced connections SLT shall notify the contractor.
- f. Invoices shall not be cleared for payment until all such defects were rectified up to the satisfaction of SLT.

8.3 Date Service Provided (DSP)

The date SLT issue the „test number“ is considered to be the “Date Service Provided”.

8.4 Final Acceptance

Not later than thirty (30) calendar days after expiration of the Warranty Period and after the satisfactory completion of any defects reported and conveyed to the contractor has been fulfilled, SLT shall issue a Final Acceptance Certificate for the work carried out.

9. Other Terms

- a. This Addendum shall come into force on the date the authorized representatives of both parties sets their respective hands to this Addendum
- b. The provisions of the Principal Contract that has not been amended in terms hereof shall continue to bind the parties.

- a. This Addendum shall be read together with Principal Contract, which sets forth the entire agreement between the parties pertaining to the supply, delivery, installation & testing goods and services and supersedes any and all earlier verbal or written agreements.

IN WITNESS WHEREOF the Signatures of and the and respectively of Sri Lanka Telecom PLC, the authorized signatories of Sri Lanka Telecom PLC were placed hereto and the signature of being the authorized signatory of the said <Name of the Contractor>, was placed hereto and to one other of the same date and tenor as these presents at the place and on the date hereinbefore mentioned.

The signatures of

OSP Unit Rate

and the authorized
signatories of Sri Lanka Telecom PLC
were placed hereto.

Witnesses;

1.....
Name.....

2.....
Name.....

The signature of
the authorized signatory of the said
<Name of Contractor>
was placed hereto on <Date>, in
Colombo.

.....
Signature of the Contractor

Witnesses;

1. _____
Name:

2. _____
Name:

ADDENDUM FOR THE PROVISION OF NEW CONNECTIONS**(Ref: PM/Proj. No/NC/Serial No./Year)****LOI Ref:****SLT Ref:.....**

This Addendum bearing No. **PM/Proj. No/NC/Serial No./Year** (hereinafter referred to as Addendum) to the Principal Agreement No. dated is made at, Colombo on this day of, 2013.

BY AND BETWEEN

Sri Lanka Telecom PLC, bearing registration number PQ7, a Company duly incorporated under the Conversion of Public Corporations and Government Owned Business Undertakings into Public Companies Act No. 23 of 1987 and by order published in the Gazette (Extraordinary) of the Democratic Socialist Republic of Sri Lanka No. 942/7 dated 25th September, 1996 and registered under the Companies Act No.07 of 2007 and hereinafter called and referred to as “SLT” which term or expression shall where the context so admits or requires, mean and include the said Sri Lanka Telecom PLC its successors and permitted assigns of the one part.

AND

<Unit Rate Contractor> bearing registration No....., a company duly incorporated under the laws of Sri Lanka and having its Head Office at **<Contractor’s Office Address>**. (hereinafter sometimes called and referred to as “Contractor” which term or expression shall, where the context so requires or admits, mean and include the said, **<Unit Rate Contractor>**, its successors and permitted assigns) of the second part

WHEREAS;

- b. SLT and Contractor have entered into a contract **<Contract No.>** dated (hereinafter referred to as the Principal Contract) for the purchase of goods and services for the Network Development work of Out Side Plant Net works of SLT based on the unit

OSP Unit Rate

rates given in the **Annex A** to the Principal Contract.

OSP Unit Rate

- c. Now SLT is desirous of procuring Contractor's Goods and Services for the provision of New Connections on the same terms and conditions and at the unit rates as per the **Annex A** of the Principal Contract, to which the Contractor has agreed.
- d. Contractor, after having studied the conditions under which the said New Connections are to be provided and the other factors that may have a bearing on the said Network Development work of Out Side Plant Networks including regulatory and legal aspects, has represented to SLT that it has the capacity, expertise and resources to provide the desired New Connections within the time schedules and unit rates set by SLT.
- e. The parties are desirous of stating a supplement/addition to the aforesaid Principal Contract in writing.

NOW THE PARTIES HERETO AGREE AS FOLLOWS:

f. Scope of work

The scope of this Addendum No <Addendum No.> (hereinafter sometimes referred to as the "Scope") is to execute <Description of Work> in <RTOM Area> under the approved Unit Rates given in the **Annex A** to the Principal Contract.

g. Value of the Addendum

- a. The Total Estimated Value of this Addendum is Rs <Job Value> + Taxes.
- b. The aforesaid value of the Addendum is based on the unit rates in Annex A of the Principal Contract. However SLT reserves the right to allocate work based on the unit rates of any of the category I, II and III of the aforesaid Annex A. In the event the selected category is changed resulting in reduction of the value of the Addendum then the Contractor shall have no legitimate expectation to the difference between the value of the Addendum and the calculated value of the Addendum as per the subsequently selected categories.

h. Period

- a. The period of this Addendum (hereinafter sometimes referred to as the "Period") shall commence from the date of signing of this Addendum and/or the submission of the Performance Security by the contractor as per the clause No. 4 below , which ever comes later and shall stand terminated on issuance of the Final Acceptance Certificate, unless extended by mutual agreement.

- b. The parties further agree that the coming into force of the addendum and the period of completion of the work scope herein shall be further governed by the clause No 34 and 16 respectively of the principal contract.

4. Performance Security

- 4.1 Within fourteen (14) calendar days after receiving the Letter of Intent the contractor shall furnish a performance security for ten per cent (10%) of the total value of this Addendum amounting to Sri Lankan Rupees(SL Rs.....) in a form acceptable to SLT from a bank operating in Sri Lanka acceptable to SLT.
- 4.2 The proceeds of the performance security shall be payable to SLT on the contractors failure to complete its obligations under the contract. The contractor shall cause the validity period of the performance bond to be extended for such period(s) if the period is extended.
- 4.3 The performance security shall be denominated in the currencies of the Contract and shall be in the form of an irrevocable and unconditional bank guarantee, issued by a bank located in Sri Lanka acceptable to SLT. The said bank guarantee shall remain in force until the issuance of the Final Acceptance Certificate or 12 months after the issuance of the Provisional acceptance Certificate, whichever comes later.
- 4.4 Performance security will be discharged or returned by SLT not later than thirty (30) calendar days following the date of Final Acceptance Certificate or 12 months after the issuance of the Provisional Acceptance Certificate.
- 4.5 However in the event the value of this Addendum is less than One Million (excluding taxes) the Contractor shall not be required to furnish a performance security as mentioned above.

5. Terms of Payment

The method and conditions of payment to be made for the contractor under this addendum is mournfully stated under clause no. 17 of the Principal Contract.

6. Work Procedure

- 6.1 Contractor shall complete the work of each Service Order, within the following time frame, according to the following conditions.
- (iii) If pole erection is not involved work should be completed within two working days.
- (iv) If pole erection is involved work should be completed within five working days.

The number of days shall be counted from the date receipt of the particular service order.

- 62 Contractor shall use the material specified in the „Technical Specifications and installation Standards“ attached as annexure to this document.

7. Delays in Contractors Performance

- c. Failure to comply with the time limit given in, the Contractor shall pay to SLT, a penalty of Rs.500/- per connection per each week in each instance of such delay. Contractor may appeal to SLT to waive this penalty in cases where the delay is solely due to SLT's default. In such situations the decision of CEO of SLT shall be final and binding on the parties.
- d. If at any time during performance of the Contract, the Contractor encounters conditions impeding the timely execution of the service orders, the Contractor shall promptly notify SLT and return the particular service order. SLT shall take appropriate action to clear the obstruction and SLT may hand over the service order again to the contractor and the number of days will be counted there onwards.
- e. In case where SLT issue service order significantly exceeding the normally agreed rates of the Contractor, SLT will grant a reasonable extension of the period to complete such service orders.
- f. SLT may request any service order to be completed on priority or decide on service levels for which compensation considered depend on the lead time for service.

i. Acceptance

8.1 General

The material and work shall be accepted on service order basis in accordance with Technical Specifications after submitting such works to a Provisional Acceptance Test and a Final Acceptance Test designed by SLT.

8.2 Provisional Acceptance

After completion of the telephone line installation work the Contractor shall inform SLT that the line is ready for Provisional Acceptance Testing. Also the Contractor shall submit a completed Quality Check Sheet (NC-MON-QUA) one sheet for each line completed.

OSP Unit Rate

- j. SLT shall issue a “Test Number” if SLT satisfied with the Provisional Acceptance Test results or
- k. SLT shall notify the Contractor with reasons that SLT will not issue a Test Number if SLT is not satisfied with the Provisional Acceptance Test results.
- l. Contractor shall rectify the defects and re-submit for Provisional Acceptance.
- m. Contractor shall not invoice line construction work for payment without having a Test Number.
- n. If any defects found in the cause of checking the invoiced connections SLT shall notify the contractor.
- o. Invoices shall not be cleared for payment until all such defects were rectified up to the satisfaction of SLT.

8.3 Date Service Provided (DSP)

The date SLT issue the „test number“ is considered to be the “Date Service Provided”.

8.4 Final Acceptance

Not later than thirty (30) calendar days after expiration of the Warranty Period and after the satisfactory completion of any defects reported and conveyed to the contractor has been fulfilled, SLT shall issue a Final Acceptance Certificate for the work carried out.

9. Other Terms

- p. This Addendum shall come into force on the date the authorized representatives of both parties sets their respective hands to this Addendum
- q. The provisions of the Principal Contract that has not been amended in terms hereof shall continue to bind the parties.
- r. This Addendum shall be read together with Principal Contract, which sets forth the entire agreement between the parties pertaining to the supply, delivery, installation & testing goods and services and supersedes any and all earlier verbal or written agreements.

IN WITNESS WHEREOF the Signatures of and the and respectively of Sri Lanka Telecom PLC, the authorized signatories of Sri Lanka Telecom PLC were placed hereto and the signature of being the authorized signatory of the said <Name of the Contractor>, was placed hereto and to one other of the same date and tenor as these presents at the place and on the date hereinbefore mentioned.

OSP Unit Rate

The signatures of
and the authorized
signatories of Sri Lanka Telecom PLC
were placed hereto.

Witnesses;

1.....	2.....
Name.....	Name.....

The signature of the authorized signatory of the said <Name of Contractor> was placed hereto on <Date>, in Colombo.	 Signature of the Contractor
--	--------------------------------------

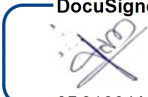
Witnesses;

1. _____	2. _____
Name:	Name:

List of Unit Rates**Annex A**

#	Scope Model	Unit Designator (UD)	UD Description	SLTS Agreed Price LKR (Without Taxes)
1	Model 1B	SLTM-1	Provisioning of FTTH New Connections service only	11,000.00
2	Model 1B	SLTTV-EX	Provisioning of PeoTV New Connections to Existing FTTH Connection	4,350.00
3	Model 1B	PL-6.7m CE	Supply of 6.7m Lightly Loaded Cost Effective Concrete Pole	10,396.84
4	Model 1B	PL-5.6m CE	Supply of 6.7m Lightly Loaded Cost Effective Concrete Pole	7,547.78
5	Model 1B	PL-8.0m	Supply of 6.7m Lightly Loaded Cost Effective Concrete Pole	17,369.34
6	Model 1B	PL-CE	Installation service cost of any Concrete Pole beyond the agreed rate of 15%	10,114.29
7	Model 1B	FTTH-DW	Install of FTTH Drop Wire	FOC
8	Model 1B	SLTS - PT	Transport of FTTH materials and Poles for FTTH New Connections per year (Monthly LKR5,000,000.00)	60,000,000.00
9	Model 1B	PL-ADM	Concrete Pole Administrative fee (per pole)	500

DocuSigned by:



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Sri Lanka Telecom PLC
Telecom Headquarters
Lotus Road
Colombo 01 Sri Lanka

PURCHASE ORDER	
This number must appear on all packing slips, shipping documents, packages and invoices	
PO No.:	
Contract No.:	
Page 1 of 2	Purchase Order Date:
Tender/ Reference No.:	

Supplier Name	Sri Lanka Telecom (Services) Ltd
Address	148/15 Lesley Ranagala Mawatha 00800 Colombo 08 Sri Lanka
Supplier Contact No	

Contact Person:
Phone Number:
Ship-to Address:

Payment Terms	Shipping Terms	Currency	Requisition No
Immediate		LKR	26105439

S.No	Item Code	Description	Note	Required Delivery Date	Qty	UoM	Unit Price	Total
1								

Total	
SSL	
VAT	
Total (Inc. Tax)	

Note to Supplier

PO No.:

Approved By:

This is a computer generated purchase order and no signature is required.

1. PO Price Inclusive of all applicable taxes
2. Tax components shall be separately shown at time of Invoicing
3. Order shall be completed according to the contract Terms and Conditions
4. Please strictly comply with the delivery address mentioned in this PO. Any change to the delivering address without written confirmation from SLT may lead to rejection of the payment

Scope of Work

The scope of work involves acquiring FTTH (Fiber-to-the-Home) New Connection Implementation services from Sri Lanka Telecom Services Pvt Ltd (SLTS), a subsidiary of SLT. An implementation model, namely Model 1, is to be utilized for this project.

Implementation Model 1:

1. SLTS shall provide implementation services only.
2. SLT will supply the necessary materials for implementation, as listed in the table below.
3. Payment is expected to be made via Direct Payment

The project timeline involves implementing Model 1 throughout year 2026. This scope of work outlines the respective responsibilities, payment structures, and implementation models for the successful deployment of FTTH New Connection services provided by SLTS, ensuring efficient and reliable connectivity for users.

Scope of Work of SLTS

#	Description
1	Planned Scope of 120K FTTH NCs from 01st January 2026 onwards
1.1	Material Reception and Management by SLTS
1.1.1	Receive relevant FTTH NC materials from SLT Main Stores at Peliyagoda & Kotugoda.
1.1.2	Store the material in safer places at their central and regional locations by assuring the safety of the materials without degrading the issued quality.
1.1.3	Assuring the use of same materials received from SLT and not mixing materials with same types of Own materials
1.1.4	Any materials which are not provided by SLT shall be self-supplied by SLTS
1.2	Provisioning of FTTH New Connection
1.2.1	Provisioning of FTTH New Connection by managing the average Drop Wire length of 180m and Per connection pole count as 0.15
1.2.2	CREATE_RECON type FTTH connections shall not be done
1.3	Provisioning of PEOTV New Connection to FTTH service in Single Visit (at the time of provisioning the FTTH New Connection)
1.3.1	PEOTV shall be provided at the time of provisioning the FTTH new connection
1.3.2	All the essential configuration required to activate the PEOTV service successfully shall be assured by the installation team according to the installation guidelines
1.4	Provisioning of PEOTV Connections to Existing FTTH line
1.4.1	PEOTV service shall be provided for any existing FTTH line as per the Service Order at the given rate in the price schedule
1.4.2	All the essential configuration required to activate the PEOTV service successfully shall be assured by the installation team according to the installation guidelines
1.5	PAT procedure
1.5.1	All new Connections are undergone to a PAT process through i-Shamp tool and Quality violations are fined according to the list of quality violation given in the draft agreement
1.5.2	All the materials used for FTTH new Connections shall be entered to the i-Shamp Tool
1.5.3	All the images specified as in the installation guide shall enter the i-Shamp Tool
1.6	Invoice Submission
1.6.1	Invoice of each month shall be submitted to the Project office on or before 30th of next month
1.6.2	Invoices shall be prepared as RM area wise
1.6.3	Invoices shall be prepared as one document
1.7	Material Reconciliation
1.7.1	All materials received and consumed shall be reconciled and reconciliation report shall be submitted (Soft and hard copies) with the relevant RM area invoice.
1.8	Quality Management, Assuring and Maintaining KPIs
1.8.1	Provisioning of all possible FTTH new connection without Poles within 5 official working Days
1.8.2	Provisioning of all possible FTTH new connection with Poles within 7 official working Days



FTTH HOME CONNECT INSTALLATION GUIDE

Document Number : ANPS GNC 001

Controlled Document Copy No: Original

Created By : E/ANP

Checked By : DGM/ANP

Approved By : GM/NFP

Issue No : 002

Issue Date : 14.02.2022

Revision No : 001

Date of Revision: 01.01.2025

Issued By : Access Network Projects Section

	FTTH HOME CONNECT INSTALLATION GUIDE Document Number : ANPS GNC 001 Internal Use Only	Issue No. 002 Date of Issue : 14.02.2022 Revision No: 001 Date of Revision : 01.01.2025 Page 1 of 17
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Internal Use Only

Access Network Projects

Document Control Sheet

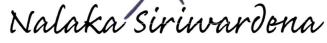
Contact for Inquiries & Proposed Changes

Name W.G.G.Gunatunga
 Designation DGM/Access Network Project
 Mobile +94716837551
 Telephone +94112386680
 Email gunaapple@slt.com.lk

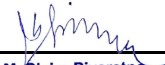
Document Preparation Committee

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Saman Karunage	E/QM	17.02.2025	
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	FTTH HOME CONNECT INSTALLATION GUIDE Document Number : ANPS GNC 001 Internal Use Only	Issue No. 002 Date of Issue : 14.02.2022 Revision No: 001 Date of Revision : 01.01.2025 Page 2 of 17
---	--	---

Table of contents

1 **INSTALLATION STANDARDS 3**

2 **TOOLS AND ACCESSORIES..... 7**

3 **PAT IMAGE GUIDE 8**

4 **SPECIAL INSTRUCTIONS16**

5 **REFERENCE TABLE OF CHANGES MADE IN THE DOCUMENT..... 17**

	FTTH HOME CONNECT INSTALLATION GUIDE Document Number : ANPS GNC 001 Internal Use Only	Issue No. 002 Date of Issue : 14.02.2022 Revision No: 001 Date of Revision : 01.01.2025 Page 3 of 17
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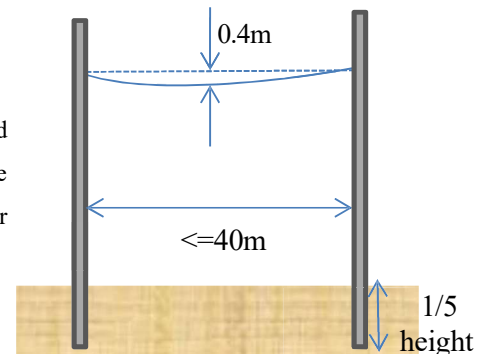
1 INSTALLATION STANDARDS

1.1 Pole Erections

- Buried depth of the pole should be $1/5^{\text{th}}$ of the pole height. In case of inability to maintain standard depth, pole base should be concreted.
- Adequate installation practices shall be established to prevent the pole from inclining and sinking.
- Backfill shall be thoroughly compacted to the full depth of the pole hole.
- Corner poles shall be guyed or braced. The bracing shall be allowed only where the guying is not practical.
- Permissible Drop Wire Clearance along the Road – 4.5m and at Road Crossings – 5.0m (However 5.5m clearance should be maintained only at Man Road crossings) & ensure Properly Tensioned Power Crossing as indicated below.

<600V – 60cm, 600 - 700V, 120cm & 7000V – 15000V, 200cm

- Installing of top bolt is mandatory.
- 8m height poles will be installed only at places, where required ground clearance cannot be maintained with existing poles. 8m poles will not be installed replacing existing poles at FDPs, if existing pole is suitable for FDP installation.

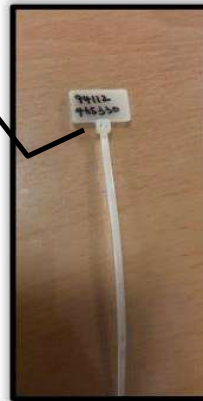


1.2 Terminating into FDP

- Fiber Drop Wire must be terminated with FAC connector (SC/UPC). Guard wire to be removed at the insertion point inside FDP and apply a gripper or a tape to stop tearing off. It should be terminated in the provided location inside FDP. If certain locations not provided inside FDP, terminate the guard wire with keeping a piece about 1 inch length.
- Fiber drop wire coiling length inside the FDP should be limited to one turn around the grooves/clips provided.
- Customers' phone number must be properly written in FDP card with relevant port number.
- Place a Tie tag which the respective TP number is written on and locate about 4 inches from port on fiber drop cable inside the FDP. Make sure not to tighten too hard (which may bend the fiber wire), but should not be movable as well. Telephone number should be written clearly by using a narrow tip permanent marker pen. (See images below)
- FDP port power to be measured when providing new connection and check whether it is in the acceptable range.

	FTTH HOME CONNECT INSTALLATION GUIDE Document Number : ANPS GNC 001 Internal Use Only	Issue No. 002 Date of Issue : 14.02.2022 Revision No: 001 Date of Revision : 01.01.2025 Page 4 of 17
---	--	--

This kind of tie tags are readily available in Hardware or Electrical shops



1.3 Drop wire Drawing

- Sag of Drop wire should not exceed 0.4m for 40m or less pole span, sag of 0.7m between 40-50m pole span. Separate fiber drop wire route should be constructed under the existing copper drop wire route to ensure new route for fiber drop wire.
- No joints allowed throughout the fiber drop wire path.
- White-colored Retainers must be used and properly fixed into L-Hooks
- C-hook to be fixed firmly at a suitable place and drop wire to be covered by flexible conduit or spiral. Guard wire to be removed around 0.5m portion at this point. In order to stop tearing off, grippers to be applied at C Hook. C hook to be installed vertically (See images below).
- Drop wire clearance from foliage must be not less than 1m.
- Drop wire bends should comply with G.657A2.

Fiber drop wire coils for maintenance purposes are allowed in accordance with the details specified in below table.

OH distance	Instructions related to implementing Drop wire coil
Drop wire length less than 200m from FDP to Customer premises	No drop wire coils allowed
Drop wire length more than 200m from FDP to Customer premises.	1. Only one 2m length cable coil is allowed for cable routes along the road. Cable coil should be kept at most suitable pole in pole route except FDP Pole and last pole near customer premise. 2. Only two 2m length cable coils are allowed for cable routes with road crossings. Cable coils should be kept at poles of road crossings.



	FTTH HOME CONNECT INSTALLATION GUIDE Document Number : ANPS GNC 001 Internal Use Only	Issue No. 002 Date of Issue : 14.02.2022 Revision No: 001 Date of Revision : 01.01.2025 Page 5 of 17
---	--	--

1.4 Internal Wire

- Fiber wire properly taken from outside to inside of house over the wall within a protective casing/conduit.
- Internal Wiring neatly done inside house within a protective casing/with an appropriate protection/using a Self-adhesive fiber wire, according to the customer awareness/agreement.
- Internal wire must comply with G.657.A2 standard.
- Appropriate Spiral or flexible conduit must use for covering the bends.
- If only the customer does not allow to draw the internal wire through casings on outer walls, it is allowed to draw internal wire through conduits above ceilings subjected to that they are fully protected appropriately (with a written request from the customer).
- If the connection is drawn from an internal FDP, drop wire length is considered after deducting 11m from the FDP to Rosette.

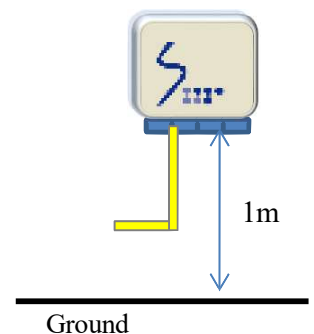
1.5 FAC Connector Assembly

- SC/UPC connector must be used.
- Connector /Adapter must be Blue in Color.
- Fiber insertion loss < 0.5dB.
- FAC connector used inside the FDP to terminate the Outdoor drop wire
- FAC connector used inside the Rosette to terminate Indoor drop wire.
- Should follow the instruction manual, and use proper tools provided by manufacturer.



1.6 ONT Placement

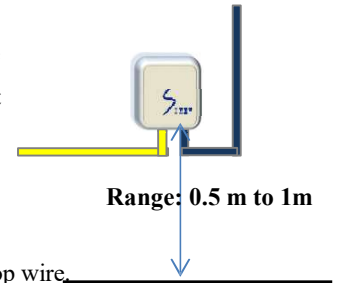
- ONT must be placed in a proper location on wall where connectivity for the instruments can be obtained easily and less interference from other Wi-Fi signals.
- ONT must be fixed 1m from ground level
- Patch code neatly arranged and protected.
- ONT must be fixed in a way where the ports of the ONT headed downwards.
- Wi-Fi signal strengths to be measured at different distances from ONT and images be uploaded.
- Image of maximum Wi-Fi speed to be captured by using Speed test by Ookla.



	FTTH HOME CONNECT INSTALLATION GUIDE Document Number : ANPS GNC 001 Internal Use Only	Issue No. 002 Date of Issue : 14.02.2022 Revision No: 001 Date of Revision : 01.01.2025 Page 6 of 17
---	--	---

1.7 Rosette Box Placement

- Fiber Rosette properly fixed onto the inner wall at the appropriate place (where sufficient safety available and easily reachable) at a range between 0.5m to 1m height from floor level.
- FAC properly connected to fiber wire within Fiber Rosette.
- Fiber wire should be properly arranged inside the Fiber Rosette with two turns of drop wire.
- SC/UPC Adaptor must be placed within fiber Rosette.
- No splicing to be accommodated inside Rosette.
- Drop wire should inserted from one of provided inlets and not allowed to pierce a hole elsewhere and insert the wire.



1.8 Acceptable Optical power levels

- Optical power level at FDP port should be $>-22\text{dB}$.
- Optical power level at ONT port should be $>-25\text{dB}$.

1.9 Instructions for PSTN-FTTH Migrations

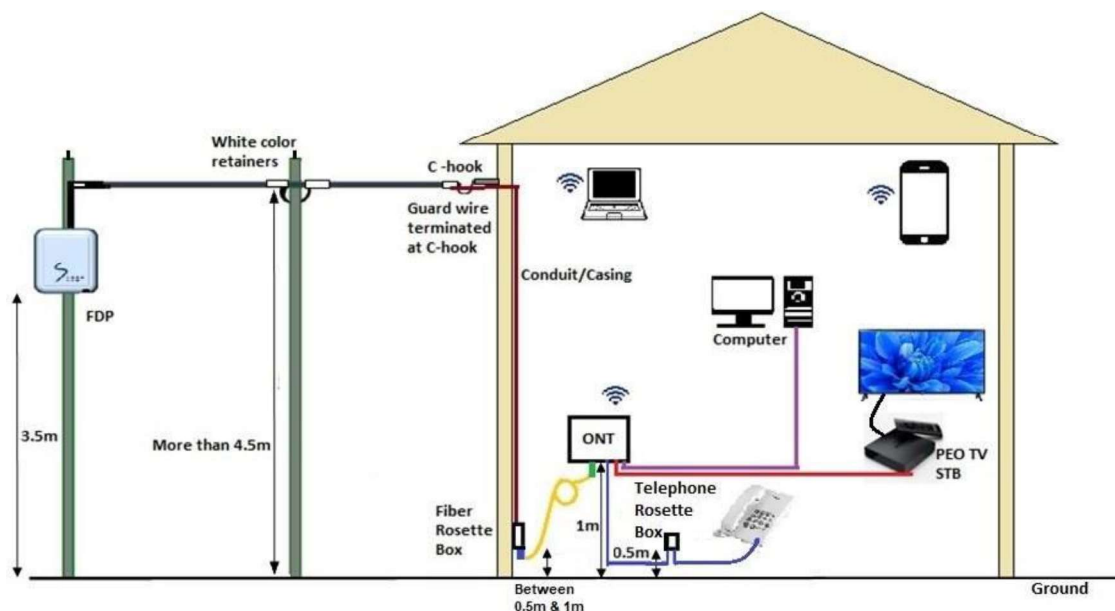
- Last span of existing Copper wire to be cut and removed, properly coiled, and returned to OPMC. Recovered retainers in last span also to be removed and returned to OPMC.
- Use of existing PSTN internal wires are not allowed and all required internal wiring to be newly installed and relevant images must be uploaded.

1.10 Testing and Confirmation of Services

- Installation staff should be equipped with a test phone to test voice service.
- Voice testing to be carried out through Auto test procedure. 1248 Short code allocated for this test.
- Installation staff should aware and show all services Voice, Internet and PEO TV to customer and ensure that they are properly working.
- Installation team should aware customer that FTTH ONT is not working without commercial power.

	FTTH HOME CONNECT INSTALLATION GUIDE Document Number : ANPS GNC 001 Internal Use Only	Issue No. 002 Date of Issue : 14.02.2022 Revision No: 001 Date of Revision : 01.01.2025 Page 7 of 17
---	--	--

1.11 FTTH Connection Installation Diagram



2 TOOLS AND ACCESSORIES

2.1 Mandatory Tools

- Fiber Drop cable stripper
- Plier
- No 5 Nipper
- Screwdriver
- Power Meter
- Power Drill
- Cleaver
- Fiber stripper
- Strip Length Template
- Lint-Free Cloth wipes
- Fiber Preparation fluid (Alcohol)
- Test Phone

	FTTH HOME CONNECT INSTALLATION GUIDE Document Number : ANPS GNC 001 Internal Use Only	Issue No. 002 Date of Issue : 14.02.2022 Revision No: 001 Date of Revision : 01.01.2025 Page 8 of 17
---	--	--

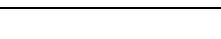
2.2 Other tools required during installation

- Power Drill
- Visual Light Source
- Power Source
- Safety Helmet
- Safety Jacket
- Safety Belt
- Safety Cone
- Kevlar Scissors (For FAC installation)
- Installation Instructions (For FAC installation)
- Laptop
- Tool Bag
- Step Ladder
- Rung Ladder

3 PAT Image Guide

3.1 List of Images

- Drop wire meter reading / standard
- Drop wire label/marketing image
- FDP – Inside & Outside
- Updated FDP card FAC connector drop wire with number tag
- FDP port power measurement
- Front view of closed FDP with pole
- C-hook to rosette cable arrangement
- Full view of Fiber rosette showing floor level
- Rosette – Cover Open & Close
- Power reading at rosette
- Meter reading at rosette
- ONT with cable arrangement
- ONT Power Measurement
- STB with cable arrangement (if PEO TV provided)
- STB & PEOTV Status screen image/PEO TV Diagnostic screen Image

	FTTH HOME CONNECT INSTALLATION GUIDE Document Number : ANPS GNC 001 Internal Use Only	Issue No. 002 Date of Issue : 14.02.2022 Revision No: 001 Date of Revision : 01.01.2025 Page 9 of 17
--	--	---

- CAT 5E cable meter reading with RJ45 connector arrangement.
- Overhead wiring pole to pole including FDP pole – Hop to Hop
- New pole installation (upper, lower with clear serial number, and full view) with L-hook arrangement.
- Wi Fi Strength & Speed measurement – Best value near ONT
- Customer Feedback form
- Image showing the Team Appearance

All installation images should include GEO tags and other Meta data.

Contractor have to provide image proofs for all materials claimed if they are not included in the above image list.

3.2 Drop wire meter readings-at FDP side and at C Hook

FDP side

- Meter reading should be clearly visible.
- Image should be taken after the installation of FAC connector at FDP.
- FDP should be visible at background fully or partially.
- Telephone number tag to be clearly visible.



At C Hook

- Meter reading should be clearly visible.
- Image should be taken after the installation.
- Background should show either C hook or surrounding information near C hook.



3.3 Drop wire label/markings image

- Material supplier name and type to be clearly visible.
- Should be taken for each FTTH NC.
- Ensure use of SLT standardized fiber drop wire.

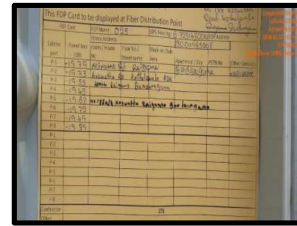


	FTTH HOME CONNECT INSTALLATION GUIDE Document Number : ANPS GNC 001 Internal Use Only	Issue No. 002 Date of Issue : 14.02.2022 Revision No: 001 Date of Revision : 01.01.2025 Page 10 of 17
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3.4 Images to be taken inside FDP

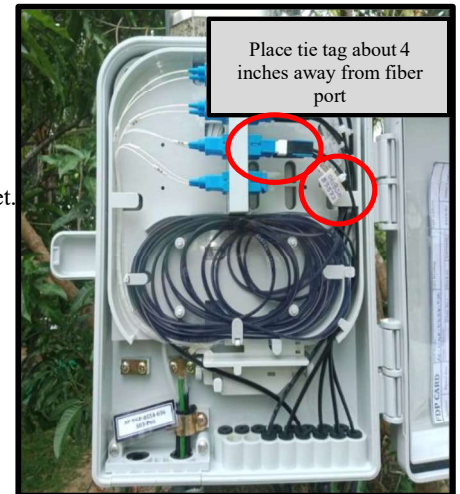
FDP Card

- Installed TP number should be written and clearly visible in image.
- Other respective details such as power measurement to be clearly visible.



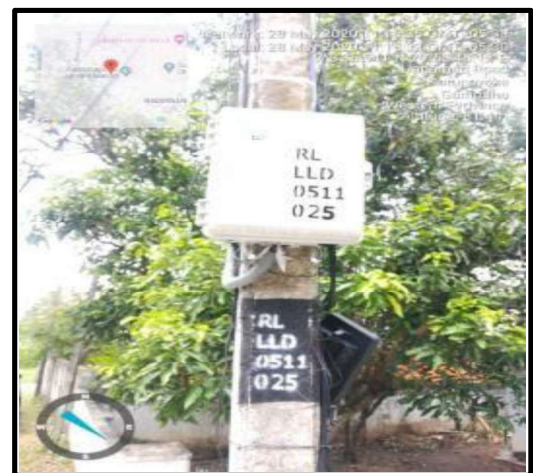
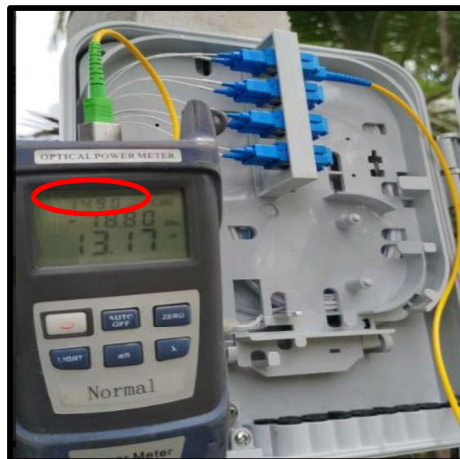
Wiring inside FDP

- TP number tags should be clearly shown.
- Drop wire drawn path around provided grooves/clips should be viewable.
- Should clearly show whether drop wire has passed through the bush in outlet.



FDP Port Power

- FDP port power measurement to be taken. Should be within the acceptable Range.



3.5 FDP Closed

- FDP number should be clearly visible.
- FDP door lock to be visible.
- Cable arrangement through outlets to be clearly visible.

	FTTH HOME CONNECT INSTALLATION GUIDE Document Number : ANPS GNC 001 Internal Use Only	Issue No.002 Date of Issue :14.02.2022 Revision No:001 Date of Revision :01.01.2025 Page11 of 17
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3.6 C Hook

- C Hook fixing method to be visible properly.
- White color retainer should be properly identified.
- Casing arrangement to be viewable.
- Gripper arrangement should be clearly viewable.
- C Hook to be installed vertically without an angle.



3.7 Fiber Rosette Box

Lid Open Fiber rosette view

- Fiber drop wire coil placed inside.
- FAC connector whether properly placed.
- Arrangement and use of inlets and outlets properly.



Lid Closed Fiber rosette view

- Height of installation comparatively with floor.
- Outer cable arrangement.
- Patch code arrangement.



3.8 Power Measurement

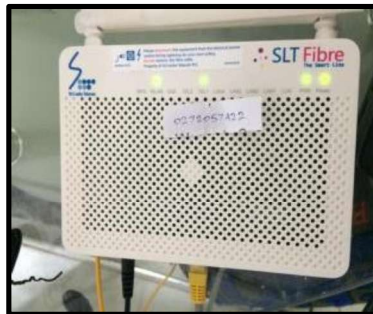
- Meter reading should be clearly visible (must use 1490nm wavelength).
- Patch code setup between rosette and power meter should be properly shown.



	FTTH HOME CONNECT INSTALLATION GUIDE Document Number : ANPS GNC 001 Internal Use Only	Issue No. 002 Date of Issue : 14.02.2022 Revision No: 001 Date of Revision : 01.01.2025 Page 12 of 17
---	--	---

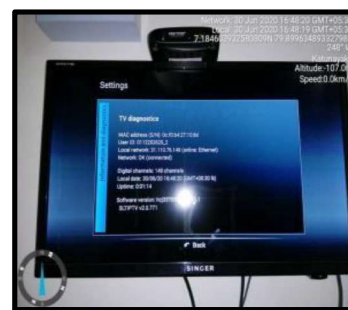
3.9 ONT Placement & Cable arrangement

- Height of placement can be viewed comparatively.
- Cable and connectivity arrangement.
- Whether all indicators are green and line is active.
- If placed on a surface, cable arrangement to be viewable.



3.10 STB & PEOTV Status screen image/PEO TV Diagnostic screen Image

- Rear side cable set up to be clearly shown.
- Surrounding details to be captured.
- PEOTV Status screen image/PEO TV Diagnostic screen Image including configuration details to be captured.
- If the TV is not available or the PEO TV connection is rejected by the customer, it must be confirmed by the customer with a letter.



	FTTH HOME CONNECT INSTALLATION GUIDE	Issue No.	002
	Document Number : ANPS GNC 001	Date of Issue :	14.02.2022
	Internal Use Only	Revision No:	001
		Date of Revision :	01.01.2025
		Page	13 of 17

3.11 Pole Installations

- Refer attached document no. MTID SEP 001

Pole Upper

- Shows upper half of the pole.
- Installation of top bolt to be viewable.
- Cable wiring setup including retainers, L Hooks and accessories should be clearly visible.
- Route clearance should be properly visible.



Pole Lower

- Pole number and other embossed details should be clearly visible.
- Pole buried depth and related markings.
- If pole base is concreted, basement details to be viewable.



Pole paths hop to hop

- Pole installation and cable path of all spans to be viewable.



	FTTH HOME CONNECT INSTALLATION GUIDE	Issue No.	002
	Document Number : ANPS GNC 001	Date of Issue :	14.02.2022
	Internal Use Only	Revision No:	001
		Date of Revision :	01.01.2025
		Page	14 of 17

3.12 Pole Concreting

- Refer attached document no. MTID SEP 001
 - If pole concreting is needed, photos showing depth of the pole on the hard rock or soil must be uploaded.
 - Pole concreting photos should include before work, during the work and after the work.



3.13 Existing Pole Images

- Shows upper half of the pole.
- Installation of top bolt to be viewable.
- Cable wiring setup including white retainers, L Hooks and accessories should be clearly visible.
- Route clearance should be properly visible.



3.14 Pole Span Images

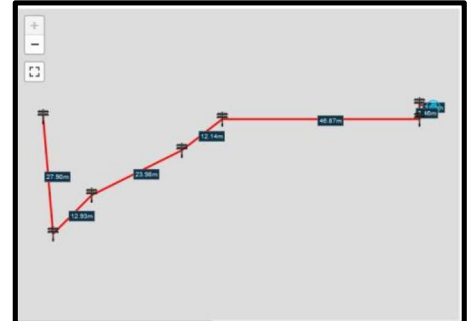
- Route of all spans in the cable path should be shown so that the clearance is visible (just only the images of the two sides are not accepted)



	FTTH HOME CONNECT INSTALLATION GUIDE Document Number : ANPS GNC 001 Internal Use Only	Issue No. 002 Date of Issue : 14.02.2022 Revision No: 001 Date of Revision : 01.01.2025 Page 15 of 17
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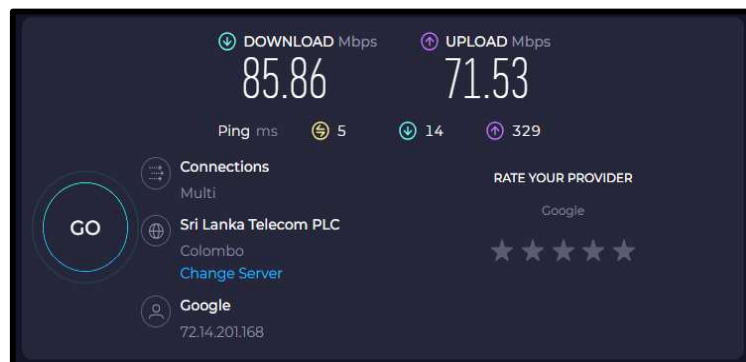
3.15 Sketch of pole route

- Designed sketch drawn using maps to be prepared and Image same to be captured.



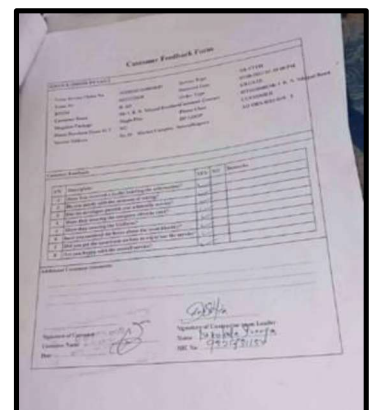
3.16 Wi Fi Speed and Strength

- Image of Wi Fi strength measurement form to be uploaded to Contractor web portal. It should be filled with details of 5 different locations in customer residence as per specified distances.
- Image of Wi Fi speed near ONT (Maximum) to be captured.
- Image of maximum Wi Fi speed to be captured by using Speed test by Ookla.

3.17 Customer Feedback Form

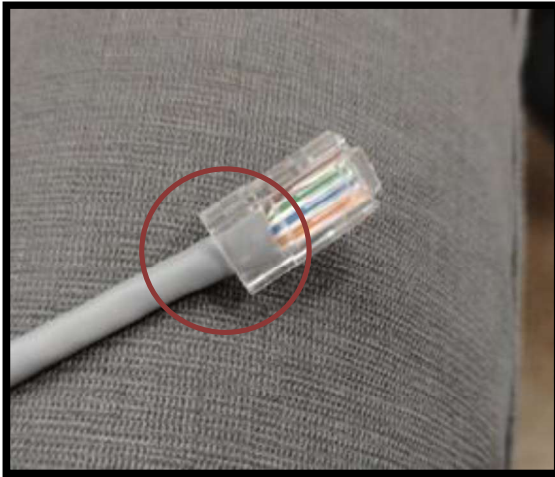
- Image of customer feedback form. (Web portal format)



	FTTH HOME CONNECT INSTALLATION GUIDE Document Number : ANPS GNC 001 Internal Use Only	Issue No. 002 Date of Issue : 14.02.2022 Revision No: 001 Date of Revision : 01.01.2025 Page 16 of 17
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3.18 CAT-5E Meter Reading

- Meter reading should be clearly visible.
- Image should be taken after the installation of RJ-45 connectors.
- ONT and STB should be visible at background fully or partially.



3.19 Team Appearance

- Always wear company identity card and hand over your team staff identification letter to Customer.
- Must use shoes instead of slippers or sandals. It will ensure both quality of appearance and safety.
- Always wear Co-branded uniform designed by SLT. Uniform includes a T-shirt and a Jacket.



4 SPECIAL INSTRUCTIONS

- All installation standards mentioned should be strictly adhered. However, due to practical surrounding situations or special customer requests, the provisioning team can adopt minor changes with the written approval of respective SF Engineer of SLT OPMC.
- If standard deviations happened due to customer special requests, it should be mentioned in the Customer Feedback form.

	FTTH HOME CONNECT INSTALLATION GUIDE Document Number : ANPS GNC 001 Internal Use Only	Issue No. 002 Date of Issue : 14.02.2022 Revision No: 001 Date of Revision : 01.01.2025 Page 17 of 17
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5 REFERENCE TABLE OF CHANGES MADE IN THE DOCUMENT

Serial No.	Old Version of the Document	Date changes made to document	Paragraph No. where changes made	Detailed description of the changes made in the document
1	ANPS GNC 001	01.01.2025	1	Standardized Material List removed as it is subjected to change from time to time
2	ANPS GNC 001	01.01.2025	3.1	Required list of images for PAT updated
3	ANPS GNC 001	01.01.2025	3.10	PEOTV Status screen image/PEO TV Diagnostic screen image added to cater both platforms.
4	ANPS GNC 001	01.01.2025	3.11 and 3.12	Standards of pole erection and pole concreting mentioned in an attachment
5	ANPS GNC 001	01.01.2025	3.16	Image of maximum Wi Fi speed to be captured by using Speed test by Ookla
6	ANPS GNC 001	01.01.2025	3.18	CAT 5E cable meter reading images and connector placement images added
7	ANPS GNC 001	01.01.2025	3.19	Instruction of capturing the Field Team Image added

CONTENTS

1.INSTALLATION OF CONCRETE POLE IN THE HARD SOIL	01
1:1.GENERAL	02
1:2. ALTERNATION METHOD	02
1:2:1 COUNTERMEASURE FOR "H" METER HEIGHT POLE	02

POLE ERECTING ON ROCK SURFACE OSP ACCESSORIES		 SRI LANKA TELECOM PLC DRAWING OFFICE SRI LANKA TELECOM HEADQUARTERS, COLOMBO 1. TEL:011-2421400 FAX: 011-2472752		
		DRG.No	OSPA-216	DATE:-
ALL DIMENSIONS ARE IN MILLIMETRES		PROPOSED BY	DRAWN BY	CHECKED BY
				Semen
SCALE: 1:1		M/DO	APPROVED BY:-	

1. Installation of concrete pole in the hard soil

1.1. General

The alternation method could be adept for installation of concrete pole in case of following.

1. When the rock appears from surface of ground level to the bottom.
2. When the rock or kabock hard soil appears middle of buried depth.

1.2. The alternation method.

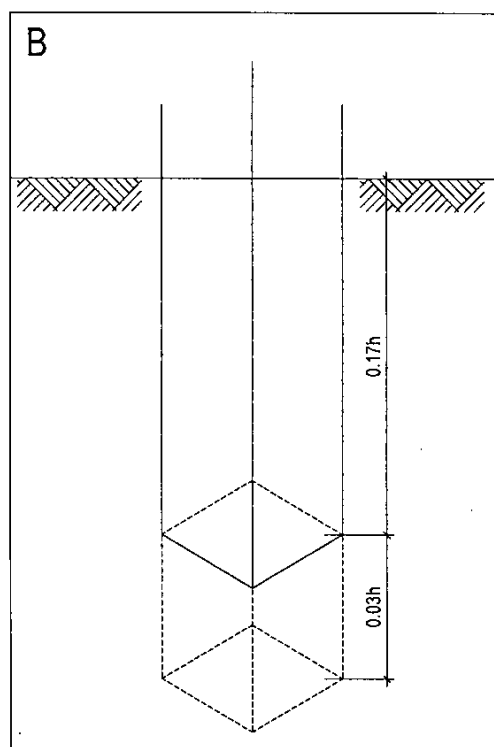
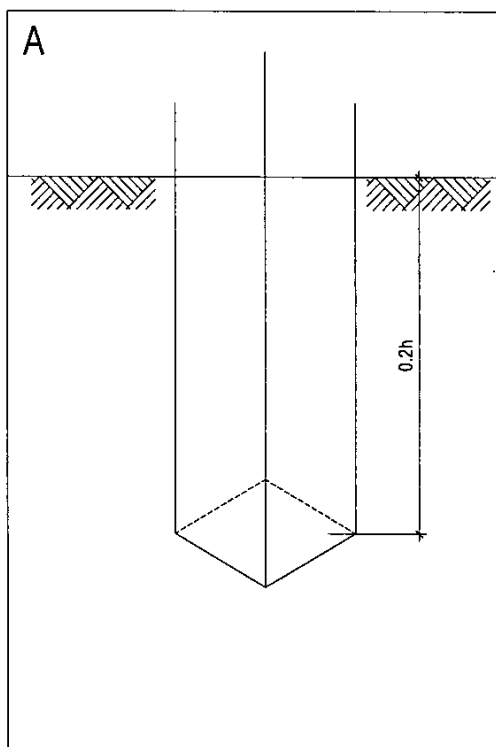
1.2.1 Installation procedure of height equal to "h" Pole

1. Required Depth is $0.2h$

Height of the Pole (m)	Standard Depth $(\frac{1}{5})(m)(A)$	Tolerance $\pm (15\%)(B)$
5.5	1.1	0.93
6.7	1.34	1.13
7.3	1.46	1.24
8.0	1.60	1.36
9.0	1.8	1.53

1.2.2 Installation procedure of height equal to "h" Pole

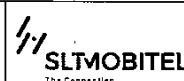
- (a) The figure "A" shows that the above standard erecting buried depth SLT staff as well as contractors.
- (b) The figure "B" shows that the above $\pm 15\%$ tolerance of standard buried depth which can be accepted only if the TTO or higher officer should inspect and approved.



POLE ON ROCK SURFACE ERECTING

ALL DIMENSIONS ARE IN MILLIMETRES

SCALE: 1:1



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DRAWING OFFICE
SRI LANKA TELECOM HEADQUARTERS,
COLOMBO 1.
TEL. 011-2421400 FAX- 011-2472752

DRG.No OSPA-216 DATE:- 2025-02-25

PROPOSED BY DRAWN BY CHECKED BY

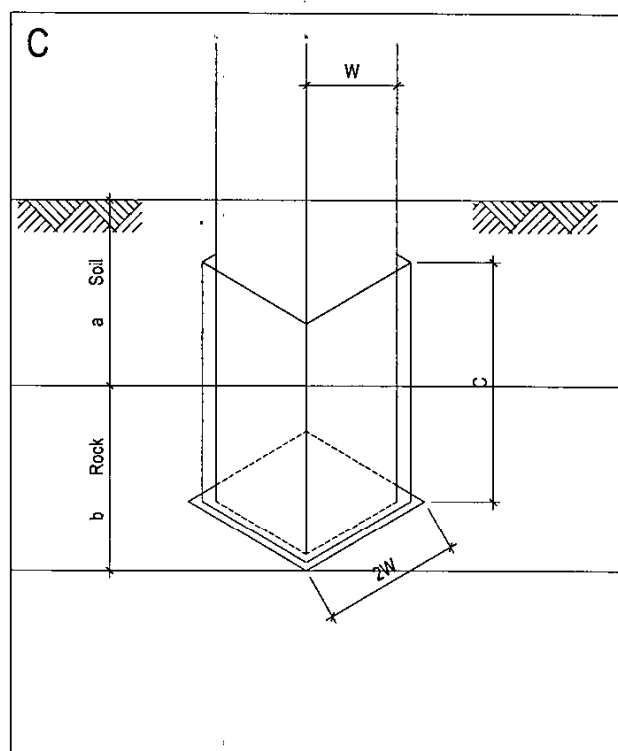
M/DO APPROVED BY:- Saman

1.2.3. Installation procedure of height equal to "h" pole on hard rock.

1.2.4. (a) If the height of the soil layer is less than or equal to 30cm, the erecting procedure as shown in figure "C".

$$\text{Height of concrete (C)} = a+b = a+h/12$$

Height of the Pole (m)	Standard Depth ($\frac{1}{6}$)(m)(A)	Countermeasure (height of concrete) (c)=a+b=a+h/12	Remarks
5.5	1.1	a + 0.45	The width of the concrete should be double the stub. Mass concrete (1:2:4)
6.7	1.34	a + 0.55	
7.3	1.46	a + 0.60	
8.0	1.60	a + 0.66	
9.0	1.8	a + 0.75	



1.2.4. (a) If the height of the soil layer is more than 30cm, the erecting procedure as shown in figure "D".

$$\text{Height of concrete (C)} = a+b = (L/6-a)/2$$

Height of the Pole (m)	Standard Depth ($\frac{1}{6}$)(m)	Countermeasure (D)=A + B=(L/6-A)/2	Remarks
5.5	1.1	(0.91-A)/2	The width of the concrete should be double the stub.
6.7	1.34	(1.11-A)/2	
7.3	1.46	(1.21-A)/2	
8.0	1.60	(1.33-A)/2	
9.0	1.8	(1.50-A)/2	

POLE ON ROCK SURFACE ERECTING

SLTMOBITEL
The Connection
SRI LANKA TELECOM PLC
DRAWING OFFICE
SRI LANKA TELECOM HEADQUARTERS,
COLOMBO 1.
TEL.011-2421400 FAX- 011-2472762

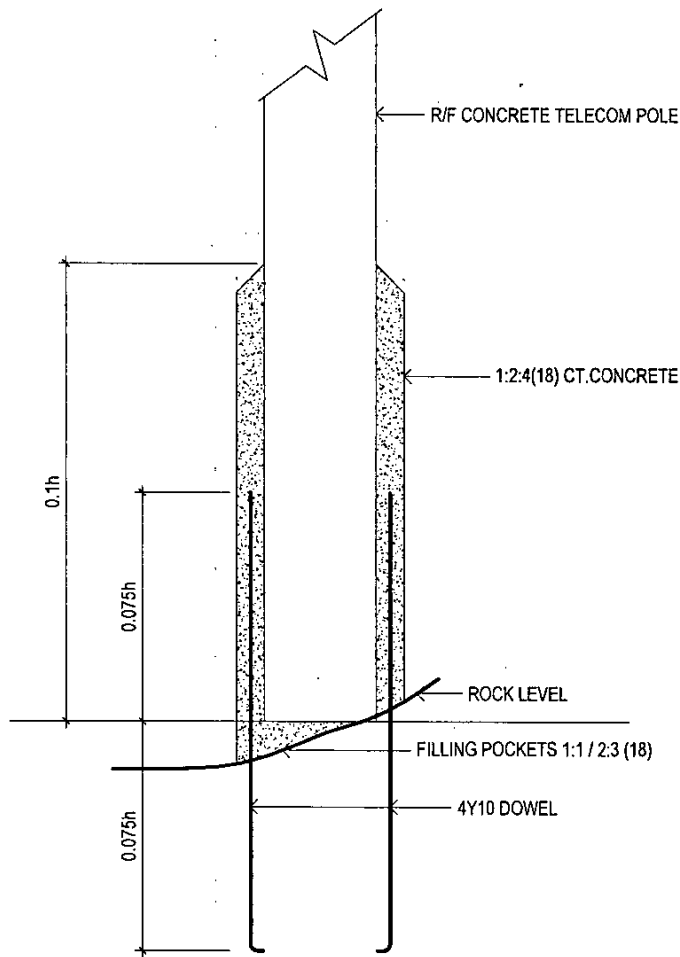
DRG.No OSPA-216 DATE:- 2025-02-25

PROPOSED BY DRAWN BY CHECKED BY

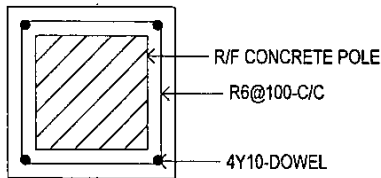
M/DO APPROVED BY:- Saman

ALL DIMENSIONS ARE IN MILLIMETRES

SCALE: 1:1



ELEVATION



PLAN

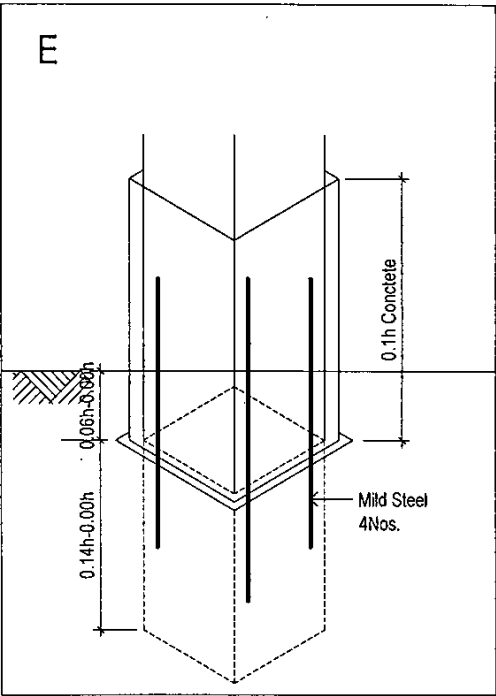
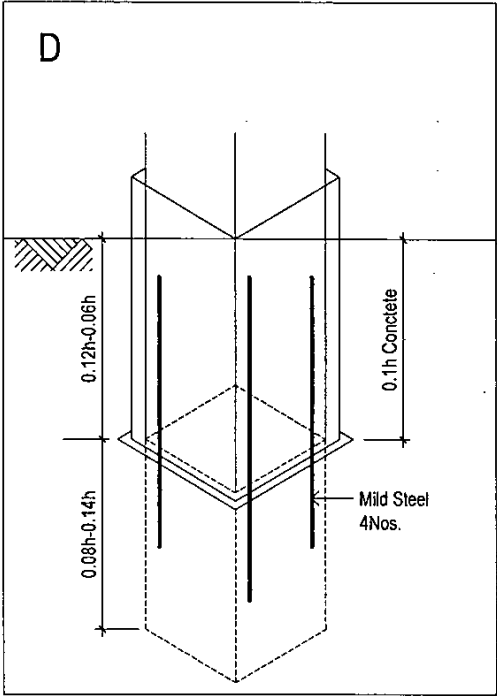
h - HEIGHT OF CONCRETE POLE

ERECTION OF R/F CONCRETE TELECOM POLE ON
HARD ROCK

 SRI LANKA TELECOM PLC DRAWING OFFICE SRI LANKA TELECOM HEADQUARTERS, COLOMBO 1. TEL.011-2421400 FAX- 011-2472752		
DRG.No	OSPA-216	DATE:- 2025-02-25
PROPOSED BY	DRAWN BY	CHECKED BY
		Saman
M/D/O	APPROVED BY:-	

ALL DIMENSIONS ARE IN MILLIMETRES

SCALE: 1:1



**POLE ON ROCK SURFACE
OSP ACCESSORIES**

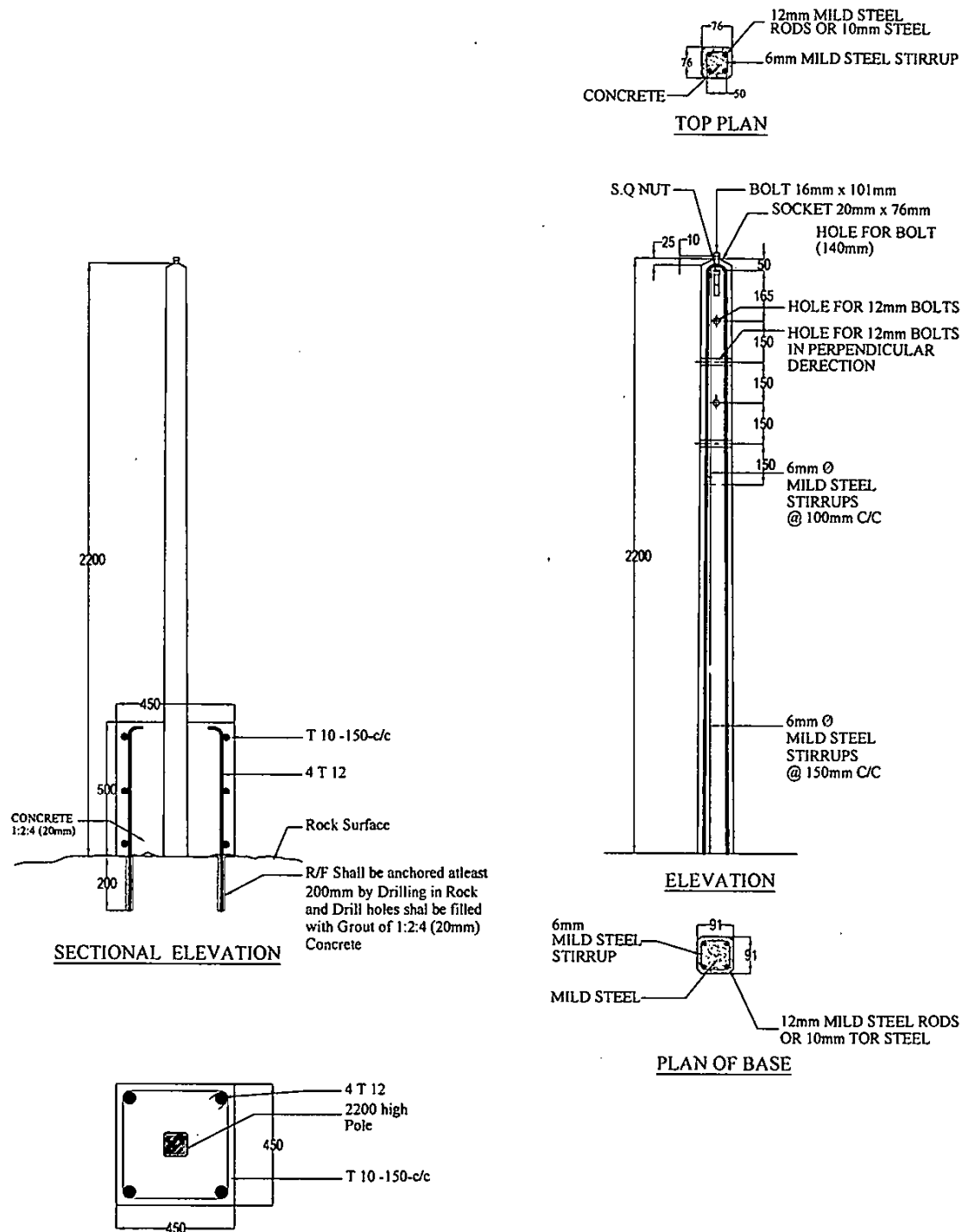
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COLOMBO 1,
TEL.011-2421400 FAX- 011-2472752

DRG.No	OSPA-216	DATE:-	2025-02-25
PROPOSED BY	DRAWN BY	CHECKED BY	
		Saman	
M/DD		APPROVED BY:-	

**NOTE:**

1. External earthing shall be provided for the cap socket at top of pole, if necessary. 2. The Dimensions of the Pole have been selected in such a way that this Pole shall be cast using the top most part of the mould of standard 5.6m Pole of SLT

POLE ON ROCK SURFACE OSP ACCESSORIES

SLTMOBITEL
The Connection
SRI LANKA TELECOM PLC
DRAWING OFFICE
SRI LANKA TELECOM HEADQUARTERS,
COLOMBO 1,
TEL: 011-2421400 FAX: 011-2472752

DRG.No OSPA-060 DATE: 2009-10-01

PROPOSED BY DRAWN BY CHECKED BY

Wesantha

[Signature]

ALL DIMENSIONS ARE IN MILLIMETRES

SCALE: 1:1

MDO

APPROVED BY: *[Signature]*